

**SUPREME COURT
OF THE UNITED STATES**

IN THE SUPREME COURT OF THE UNITED STATES

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NATIONAL REPUBLICAN SENATORIAL)
COMMITTEE, ET AL.,)
 Petitioners,)
 v.) No. 24-621
FEDERAL ELECTION COMMISSION,)
ET AL.,)
 Respondents.)
- - - - -

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Place: Washington, D.C.
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11
12 Washington, D.C.
13 Tuesday, December 9, 2025
14

15 The above-entitled matter came on for
16 oral argument before the Supreme Court of the
17 United States at 10:02 a.m.
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8 Court-appointed amicus curiae in support of the
9 judgment below.

10 MARC E. ELIAS, ESQUIRE, Washington, D.C.; on behalf of
11 the Intervenors.

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1 P R O C E E D I N G S

2 (10:02 a.m.)

3 CHIEF JUSTICE ROBERTS: We will hear
4 argument this morning in Case 24-621, National
5 Republican Senatorial Committee versus the
6 Federal Election Commission.

7 Mr. Francisco.

8 ORAL ARGUMENT OF NOEL J. FRANCISCO

9 ON BEHALF OF THE PETITIONERS

10 MR. FRANCISCO: Mr. Chief Justice, and
11 may it please the Court:

12 The coordinated party spending limits
13 are at war with this Court's recent First
14 Amendment cases. The theory is that they're
15 needed to prevent an individual donor from
16 laundering a \$44,000 donation through the party
17 to a particular candidate in exchange for
18 official action.

19 But that Rube Goldberg theory fails
20 for the same reasons this Court rejected it in
21 McCutcheon. First, it's unlikely to work
22 because the donor has to cede control of his
23 money to the party committees, which have their
24 own interests. Second, it's already prevented
25 by other things, including the \$44,000 base

1 limit, the earmarking rule, disclosure
2 requirements, and the bribery laws. And,
3 third, there's no need for it since a would-be
4 briber would be better off just giving a
5 massive donation to the candidate's favorite
6 super PAC. That's why no one has identified a
7 single case in which a donor has actually
8 laundered a bribe to a candidate through a
9 party's coordinated spending even though 28
10 states allow it.

11 All this is why my friend tries so
12 hard to argue that this case is moot. But that
13 fails too. He has to show that it is
14 impossible to grant either Vice President Vance
15 or the committees any effective relief. But
16 there's no evidence that the Vice President has
17 abandoned his intention to run for federal
18 office in 2028. To the contrary, he has an
19 active statement of candidacy, an active Senate
20 campaign committee that's already raised
21 \$50,000 in this year alone, and at least 15 of
22 the last 18 vice presidents have gone on to run
23 for the presidency.

24 And, regardless of the current
25 executive's views of the First Amendment, it

1 would be insane for Vance or the committees to
2 knowingly violate this law since it is a
3 criminal statute with a five-year statute of
4 limitations. So this case remains alive and
5 well.

6 I welcome this Court's questions.

7 JUSTICE THOMAS: Well, Mr. Francisco,
8 the RNC is not here. I think you would have to
9 explain why the groups, the Republican groups
10 here, fit the bill of a national party.

11 MR. FRANCISCO: Well, for a couple of
12 reasons, Your Honor. I think, first of all, I
13 actually think you can set the committees
14 entirely to the side --

15 JUSTICE THOMAS: Mm-hmm.

16 MR. FRANCISCO: -- and focus just on
17 Vice President Vance. And I take it your
18 question is addressing 30110.

19 JUSTICE THOMAS: Yeah.

20 MR. FRANCISCO: So I'd like to explain
21 that.

22 The Sixth Circuit plainly had both
23 Article III jurisdiction and statutory
24 authority at the time it ruled solely with
25 respect to Vice President Vance. When the

1 Sixth Circuit ruled, the Vice President had not
2 yet been elected to the vice presidency. He
3 was still a sitting United States Senator.

4 So even under my friend's position, he
5 would be within the Article III jurisdiction of
6 the Sixth Circuit and -- and as --

7 JUSTICE THOMAS: Yeah, I'm -- I'm
8 comfortable with him. It's the committees that
9 I was interested in.

10 MR. FRANCISCO: Oh, sure. Sure. And
11 I can get to the committees. My -- just to
12 finish up that point, I think, even if you
13 didn't have the committees here, you would have
14 jurisdiction solely with respect to Vice
15 President Vance.

16 Now, as to the committees, the first
17 point I would raise is that they waived this
18 issue. The first sentence of 30110 simply sets
19 forth a cause of action. As then-Judge
20 Kavanaugh made clear in his dissent in the
21 Grocery Manufacturers case on the D.C. Circuit,
22 which this Court later adopted, that can be
23 waived.

24 But, even if you turn to the text and
25 look at what it means to be a national

1 committee of a political party, this text makes
2 quite clear that that phrase includes the
3 national congressional campaign committees, and
4 it doesn't matter whether it begins with the
5 word "a" or the word "the."

6 If you look at the -- if you look at,
7 for example, the 2018 amendments, they
8 repeatedly refer to "the national committee of
9 the" -- to "a" national committee of the United
10 States as including "the" national
11 congressional campaign committees. And if you
12 look at the BCRA amendments that were added in
13 2002 -- and, specifically, I'd point you to
14 30125(b)(2)(B)(iv)(II); that's a mouthful -- it
15 specifically refers to "the national committee
16 of a political party" as including "a national
17 congressional campaign committee."

18 But I think my more -- my more
19 important point is you could disagree with me
20 on everything that I said with respect to the
21 national committees. The Sixth Circuit plainly
22 had jurisdiction over Vance at the time that it
23 ruled. Now that we're in this Court, 30110
24 doesn't really matter because it doesn't apply
25 to you. All that matters in this Court is that

1 you have jurisdiction under the certiorari
2 statute, which you plainly do, and Article III
3 jurisdiction over the case, which you do not
4 only with respect to Vance but also with
5 respect to the committees, who are also being
6 harmed by this statute.

7 JUSTICE THOMAS: So the -- with
8 respect to the Vice President, what does he
9 mean when he says in effect that it was way too
10 early to decide whether or not to run?

11 MR. FRANCISCO: Your Honor, I think
12 that what he is doing is what virtually every
13 candidate for the presidency does, is wait
14 until after the midterm elections in order to
15 announce his specific intentions.

16 But I think it's important to remember
17 here that the question is mootness. And when
18 it comes to mootness, they bear the burden of
19 showing that it's impossible to grant any
20 relief. So they have to show that Vice
21 President Vance has actually abandoned his
22 intentions to run for federal office.

23 But, here, we know a few things. We
24 know he's got an active statement of candidacy
25 and an active Senate campaign committee that's

1 not sitting around doing nothing. It's raised
2 \$50,000 this year alone. We also know that
3 virtually every vice president goes on to run
4 for the presidency, particularly young ones
5 like Vice President Vance. And with respect to
6 my friend, this Court doesn't have to blind
7 itself to the reality that's obvious to
8 everybody else.

9 CHIEF JUSTICE ROBERTS: It's important
10 for you to draw a distinction, isn't it,
11 between coordinated expenditures and actual
12 contributions? And, if -- if so, how do you
13 tell that? It seems to me that that's kind of
14 a fiction, that, oh, you know, they're just
15 coordinated expenditures; they're not making
16 direct contributions. I don't know in
17 substance what the difference is.

18 MR. FRANCISCO: Well, Your Honor, when
19 it comes to coordinated expenditures, for
20 example, when we run an ad using coordinated
21 expenditures, it actually has to say "Paid for
22 by the Republican Party," "Paid for by the
23 National Republican Senate Campaign Committee."
24 So it is very much our speech. I think the --

25 CHIEF JUSTICE ROBERTS: Well, I -- I

1 guess what I would say is you've -- you know,
2 you've identified the fiction. In other words,
3 you see the candidate is, you know, giving
4 speeches on opposition --

5 MR. FRANCISCO: Yeah.

6 CHIEF JUSTICE ROBERTS: -- to a
7 particular -- you know, farm subsidies --

8 MR. FRANCISCO: Mm-hmm.

9 CHIEF JUSTICE ROBERTS: -- or whatever,
10 and then -- you know, then you can start
11 making -- engaging in speech on that same
12 platform, that same --

13 MR. FRANCISCO: Yeah.

14 CHIEF JUSTICE ROBERTS: -- priority.
15 And I don't see that there's much difference
16 between giving him the money to let him do it
17 and doing it yourself in the practical, if not
18 legal, coordination.

19 MR. FRANCISCO: Sure. And that's my
20 second point, which is it -- it doesn't really
21 matter. I can assume for the sake of argument
22 that in theory, a coordinated expenditure can
23 be roughly the equivalent to a contribution.
24 The difference here is the -- the theory of
25 corruption.

1 When I make a direct donation to a
2 candidate, I can bribe the candidate in
3 exchange for that contribution. I can also say
4 to the candidate: If you engage in official
5 action for me, I will spend money on your
6 behalf.

7 That's not their theory when it comes
8 to coordinated spending. Nobody is arguing
9 that the party is trying to bribe the
10 candidate. Instead, the theory here is that
11 the donor is trying to bribe the candidate
12 through the party by using the party as its
13 mule in the form of coordinated expenditures.

14 That's the type of conduit bribery
15 that this Court addressed in McCutcheon when
16 you said it was unlikely to work, it's already
17 prevented by other things, and there's no need
18 for it given the rise of super PACs, why do
19 that rather than just cutting a million-dollar
20 check directly to the candidate's favorite
21 super PAC, which I think is why they have no
22 evidence this has ever occurred.

23 The FEC actually had an expert
24 below --

25 JUSTICE KAGAN: But why do that is

1 that the super PAC can't be coordinated and
2 these party expenditures can be coordinated, so
3 they're more helpful to the candidate because,
4 for the reason that the Chief Justice said,
5 they effect -- effectively function as
6 contributions to the candidate. There can be,
7 you know, coordination to the max so that
8 everything that the candidate would want is
9 done through these coordinated contributions.

10 And that's more valuable to a
11 candidate than giving money to a super PAC that
12 is generally on the same page but may do things
13 that the campaign actually doesn't want done.

14 MR. FRANCISCO: Except that a
15 contribution to a party is limited to \$44,000,
16 whereas a contribution to a super PAC is
17 unlimited. I think --

18 JUSTICE KAGAN: Well, there's the
19 \$40,000, and then you give to the joint
20 committee, and then the joint committee
21 disburses it, and then it comes back.

22 MR. FRANCISCO: Mm-hmm.

23 JUSTICE KAGAN: And it ends up in the
24 party. And all together, it's not just the 40
25 plus the three.

1 MR. FRANCISCO: Mm-hmm.

2 JUSTICE KAGAN: It's probably about a
3 half million, even putting aside the segregated
4 accounts --

5 MR. FRANCISCO: Sure.

6 JUSTICE KAGAN: -- plus the three. So
7 you've taken a base limit of \$3,000 and you've
8 amplified it into a half million -- half-
9 million-dollar contribution which is going to
10 exactly what the candidate would put it to
11 himself.

12 MR. FRANCISCO: So two responses, Your
13 Honor. The first is what I was initially
14 giving you because, yeah, I recognize the
15 hypothetical you're drawing out. But super
16 PACs have unlimited contributions. And I would
17 much rather have, you know, \$10 million of
18 independent spending if I were a candidate than
19 even \$44,000 or even \$500,000 of coordinated
20 spending. I think you addressed this issue in
21 McCutcheon.

22 JUSTICE KAGAN: Maybe, maybe not.

23 MR. FRANCISCO: But I'll put that to
24 the side and I'll take on your hypothetical
25 directly. First of all, again, I think

1 McCutcheon answers this because McCutcheon
2 directly addressed the joint fundraising
3 context and it rejected it, making quite clear
4 that joint fundraising wasn't a mechanism for
5 evading the base limits or the earmarking
6 rules, but I'd also say think about how
7 implaus- --

8 JUSTICE KAGAN: But, Mr. Francisco,
9 even in rejecting the -- the mechanism, even in
10 saying that the mechanism at issue there was
11 okay, one of the things that the Court said in
12 McCutcheon was that these limits actually
13 served to mitigate any problems that you would
14 have from the aggregation limits that were at
15 issue there.

16 MR. FRANCISCO: Sure.

17 JUSTICE KAGAN: So it clearly
18 conceived of a world in which these campaign
19 coordinated limits would be in place.

20 MR. FRANCISCO: Sure. But I think
21 that the joint fundraising theory that my
22 friends lay out in their briefs is the same
23 highly implausible theory that this Court
24 rejected in McCutcheon. Think about how it
25 works.

1 I donate to 20 different committees,
2 political committees, candidate committees.
3 All of those committees then agree to transfer
4 all of that money to one committee. That one
5 committee then agrees to spend all of that
6 money for one candidate all so that one
7 candidate can deliver official action back to
8 me.

9 If this were a real problem, you'd
10 think that they'd have evidence of it occurring
11 one time in all of American history, yet they
12 don't. The reason they don't are the reasons
13 you gave in McCutcheon.

14 And in addition, why would I go
15 through that circuitous scheme rather than just
16 give, call it 1 million, call it 10 million,
17 call it a hundred million dollars, to my
18 candidate's favorite super PAC --

19 JUSTICE SOTOMAYOR: You -- you keep --

20 MR. FRANCISCO: -- which, again, is
21 the issue you addressed in McCutcheon.

22 JUSTICE SOTOMAYOR: You keep saying
23 there's no evidence of this kind of
24 coordination resulting in a quid pro quo or the
25 appearance thereof, but the whole Campaign

1 Finance Board is based -- law is based on just
2 such an evidence.

3 In the early 1970s, that's what led to
4 all of this congressional action. The dairy
5 industry channeled millions of dollars to
6 President Nixon through the Republican party
7 and its committees. The industry landed a
8 hundred-million-dollar subsidy from President
9 Nixon in return. Was there a quid pro quo?
10 There certainly was an appearance of quid pro
11 quo. That's what started the entire campaign
12 finance reform legislation.

13 The threat hasn't diminished. One
14 impetus behind the Bipartisan Campaign Reform
15 Act, the more recent one, was to address how
16 donors were funneling soft money to national
17 parties that those parties would then use to
18 benefit federal candidates to national parties,
19 that there was ample evidence -- and I'm citing
20 from our own case law on this -- about how
21 parties were willing intermediaries.

22 The evidence in McConnell showed that
23 this circumvention was effective. Donations
24 from the tobacco industry to Republicans
25 scuttled tobacco legislation just as

1 contributions from trial lawyers to Democrats
2 stopped tort reforms.

3 And in Colorado II, this Court cited
4 the tallying scheme used by the DNC. That was
5 an informal agreement between the DNC and
6 candidates in which candidates encouraged
7 donors to give to that party with the tacit
8 understanding that the party would funnel that
9 contribution back to the candidate through
10 coordinated expenditures.

11 I don't understand how you can say
12 there's a lack of evidence. It's replete in
13 all of our cases and in the history. And if
14 there's not direct evidence, it's because our
15 umbrella is working.

16 Your party said to us that we did not
17 have to worry about independent expenditures
18 and a limit because we had -- we had laws that
19 stopped coordinated contributions. So what you
20 told us was the prophylactic that was enough
21 to -- for us to rule in favor of unlimited
22 expenditures, you now want to take that
23 umbrella completely away.

24 MR. FRANCISCO: May I?

25 JUSTICE SOTOMAYOR: That's your point.

1 MR. FRANCISCO: So, Your Honor,
2 there's a lot in there, and to unpack it a
3 little bit, I think where I'd start is the FEC
4 actually had an expert below and built a
5 record, and the FEC's own expert conceded that
6 none of the examples that he had or any of the
7 other historical examples actually involved
8 coordinated party spending.

9 So there's no example of coordinated
10 party spending ever being used --

11 JUSTICE SOTOMAYOR: Because it hasn't
12 happened. We've been prohibiting it since
13 Buckley.

14 MR. FRANCISCO: And, Your Honor,
15 that -- that is my second point. We actually
16 have 28 states in this country that impose no
17 limits on a party's ability to coordinate with
18 its candidates, none. We don't have any
19 example from those 28 states.

20 We have the 2014 amendment, which
21 tripled the size of the base limit for certain
22 types of contributions, completely excused it
23 from coordinated party expenditures. We have
24 absolutely zero examples of coordinated party
25 spending in that context being used for quid

1 pro quo bribery.

2 We also have existing law that allows
3 \$44,000 contributions to us, which can be
4 coordinated in amounts ranging from \$60,000 to
5 \$4 million depending on the race. The number
6 of examples of the type of quid pro quo conduit
7 bribery they're concerned about in that
8 context, zero as well.

9 CHIEF JUSTICE ROBERTS: Thank you,
10 counsel.

11 Justice Thomas?

12 Justice Alito?

13 JUSTICE ALITO: This is a question I
14 will ask you and Mr. Elias, and it has to do
15 with who is helped and who is hurt by the
16 provision that is before us.

17 In our much maligned, I think unfairly
18 maligned, decision in Citizens United, the
19 effect of the provision at issue was to
20 privilege certain corporations, namely the
21 corporations that control all of the national
22 media, and disadvantage other corporations like
23 Citizens United, and the effect of our decision
24 was to level that playing field.

25 Here, it is not apparent to me who is

1 benefitted by this provision and who is
2 disadvantaged by the provision, and I would
3 appreciate your enlightening me on that
4 subject.

5 MR. FRANCISCO: Sure. I think one
6 thing that we have seen as a result of this
7 provision -- and this is actually a point that
8 is embraced by many of those who are actually
9 in favor of very robust campaign finance
10 reform -- it's the idea that the relative power
11 of the super PACs has increased dramatically
12 and the relative power of the political parties
13 has been diminished as a result.

14 I think you'll see in the materials
15 graphs that show how the changes in spending
16 have -- have gone over time, and what you've
17 seen is an explosion in the size of super PACs,
18 whereas the spending of the political parties
19 has been relatively minimal.

20 And I -- we think that that actually
21 has many dangers to our democracy. Political
22 parties serve a moderating influence by forcing
23 essentially compromises within a party in order
24 to put forward a platform and to put forward
25 candidates, whereas PACs and super PACs can

1 often be focused on narrower issues. So, to
2 me, that's one of the big sets of winners and
3 losers that have -- have resulted.

4 We think, by invalidating the
5 coordinated party expenditure limits, you start
6 to restore the political powers to the
7 relative -- the political parties to the
8 relative political power that they've
9 ultimately had, which I think is ultimately to
10 the benefit of democracy itself.

11 JUSTICE ALITO: Well, you represent a
12 political party, and the Intervenor Respondents
13 represent a political party, and I know you're
14 both here simply making arguments that you
15 think will advance the public good. But I
16 wonder whether there is a reason why you have
17 provided an argument in support of -- the -- in
18 defense of the role of political parties, but
19 both of the -- both you and the Intervenor
20 Respondents represent political parties, so
21 that doesn't quite answer my question.

22 MR. FRANCISCO: Sure. Historically,
23 we've been aligned on this issue. The two
24 political parties have been aligned on this
25 issue. Historically, both of the parties have

1 resisted these types of incursions into their
2 own ability to engage in free speech.

3 I'm going to venture into the realm of
4 speculation here, Your Honor, to answer your
5 question because I don't think the record
6 actually really does answer your question, but
7 I think one answer might lie in the fact of
8 where the different parties' relative
9 fundraising strengths have been over the years.
10 Over the years, I think that there's some sense
11 that the Republican Party apparatus is raising
12 more money relative to the candidates, whereas
13 the -- within the Democratic apparatus, the
14 candidates are raising more money relative to
15 the party apparatus.

16 If that is true, you could understand
17 why one party might favor more robust party
18 structures and the other party less so. I am
19 absolutely not relying on that. I'm relying on
20 the same free speech principles that in the
21 past we and my friends on the Democratic side
22 have been locked in arms on in defending.

23 JUSTICE ALITO: All right. Thank you.

24 CHIEF JUSTICE ROBERTS: Justice
25 Sotomayor?

1 JUSTICE SOTOMAYOR: Your answer's
2 suggesting to me that every time we interfere
3 with the congressional design we make matters
4 worse. You're telling us that Citizens United
5 and McCutcheon ended up, yes, in amplifying the
6 voice of corporations but diminishing another
7 voice, that of the party.

8 Now you want to now tinker some more
9 and try to raise the voice of one party. Our
10 tinkering causes more harm than it does good.

11 MR. FRANCISCO: Your Honor, I -- I
12 personally never think free speech makes things
13 worse. I think it virtually always makes it
14 better. I --

15 JUSTICE SOTOMAYOR: So you think it's
16 okay from McCutcheon that in the 2016 election,
17 Hillary Clinton set up a joint victory fund
18 with the DNC and 32 state parties which allowed
19 a single donor to give up to \$356,000? That's
20 quite a difference from the individual limit.

21 In 2024, Donald Trump's campaign
22 launched a joint fundraising operation with his
23 own leadership PAC, the RNC, and 40 state
24 Republican Party committees that sought
25 donations of up to \$814,600, and because of the

1 disclosures, he knows exactly who gave all that
2 money. I'm not picking on Donald Trump.
3 Joe -- Joe Biden's victory fund, together with
4 the DNC and the party committees of all 50
5 states, raised up to \$1.3 billion.

6 And now you want to say we want to
7 take -- because, once we take off this
8 coordinated expenditure limit, then what's
9 left? What's left is nothing, no control
10 whatsoever.

11 MR. FRANCISCO: So, with -- with all
12 respect, Your Honor, I don't have a problem
13 with the various statistics you just cited in
14 the absence of any evidence or any suggestion
15 it was ever tied to quid pro quo corruption.
16 And that is the teaching of this case, is more
17 speech is always better than less speech.

18 JUSTICE SOTOMAYOR: You mean to
19 suggest that the fact that one major donor to
20 the current President, the most major donor to
21 the current President, got a very lucrative job
22 immediately upon election from the new
23 administration does not give the appearance --

24 MR. FRANCISCO: Your Honor --

25 JUSTICE SOTOMAYOR: -- of a quid pro

1 quo?

2 MR. FRANCISCO: Your Honor, I'm not a
3 hundred percent sure about the example that
4 you're looking at, but, if I am familiar, if I
5 think I know what you're talking about, I have
6 a hard time thinking that his salary that he
7 drew from the federal government was an
8 effective quid pro quo bribery, which may be
9 why nobody has even remotely suggested that to
10 be the case.

11 JUSTICE SOTOMAYOR: Maybe not the
12 salary, but, certainly, the lucrative
13 government --

14 MR. FRANCISCO: Yeah.

15 JUSTICE SOTOMAYOR: -- contracts might
16 be.

17 CHIEF JUSTICE ROBERTS: Justice Kagan?

18 JUSTICE KAGAN: I'm wondering,
19 Mr. Francisco, whether your answer to Justice
20 Alito didn't contradict or at least is in
21 tension with your answer to me because --

22 MR. FRANCISCO: Mm-hmm.

23 JUSTICE KAGAN: -- when I talked to
24 you about some of the dangers that taking off
25 these expenditure limits would have, you said

1 no worries because, really, everybody's just
2 going to continue to contribute to super PACs.
3 That's really the way to -- to favor a
4 candidate. But, to Justice Alito, you said no,
5 this is going to reshape the balance between
6 super PACs and parties.

7 And I'm inclined to say that you can't
8 have it both ways.

9 MR. FRANCISCO: So, Your Honor, I
10 think that what I was getting at in response to
11 your question -- and, if I wasn't clear, maybe
12 I can clarify it now -- is that there's not the
13 risk that somebody is going to try to launder a
14 bribe through the party to the candidate in
15 exchange for official action, particularly when
16 that so-called bribe is capped out at \$44,000,
17 when --

18 JUSTICE KAGAN: Which it's really not
19 \$44,000, which it's --

20 MR. FRANCISCO: -- when they can --
21 call it 500,000 --

22 JUSTICE KAGAN: Yeah.

23 MR. FRANCISCO: -- call it whatever
24 you want through this very circuitous --

25 JUSTICE KAGAN: Well, 500,000, that's

1 a lot more than 44,000, no?

2 MR. FRANCISCO: -- through -- through
3 this -- through this very circuitous joint
4 fundraising operation that has never occurred
5 in the quid pro quo context in history.

6 JUSTICE KAGAN: Yeah, nobody seems to
7 find the circuitry all that difficult to deal
8 with.

9 MR. FRANCISCO: But -- but put all
10 that to the --

11 JUSTICE KAGAN: I mean, at this point,
12 all of these committees are in constant
13 communication with each other and funnel money
14 back and forth without any difficulty because,
15 you know, once you have the joint fundraising
16 committees in place, this is not very
17 difficult.

18 MR. FRANCISCO: And then you would
19 think that if it were so easy and it were so
20 common, it would be fairly easy to find at
21 least one example in of all American history to
22 find where it has been used to effectuate this
23 type of quid pro quo conduit bribery, yet there
24 is none, not in that context, not in any other
25 context, even though there are lots of laws

1 that will allow that type of scheme if you
2 wanted it.

3 But my only --

4 JUSTICE KAGAN: Let me -- let me take
5 you in a -- let me ask you another question,
6 which is, on your theory, as I understood your
7 theory, it -- if you took everything that you
8 said to me about why we shouldn't worry
9 about -- and to the Chief Justice about why we
10 shouldn't worry about these -- these limits, I
11 would think that that would apply just as well
12 if it was another kind of group rather than a
13 party that was coordinating with the candidate
14 or, indeed, if it was an individual
15 coordinating with the candidate.

16 Why wouldn't everything you say apply
17 to --

18 MR. FRANCISCO: Mm-hmm.

19 JUSTICE KAGAN: -- individuals and
20 private groups --

21 MR. FRANCISCO: Sure.

22 JUSTICE KAGAN: -- such that now,
23 rather than telling those individuals you can
24 go contribute to a super PAC or do your own --

25 MR. FRANCISCO: Mm-hmm.

1 JUSTICE KAGAN: -- independent
2 expenditures, but, no, you cannot coordinate
3 with the candidate for more than \$3300, now you
4 can?

5 MR. FRANCISCO: Mm-hmm. And it's all
6 of the reasons that this Court gave in
7 McCutcheon why this type of conduit bribery
8 scheme is less of a risk than a direct bribery
9 scheme between the donor and a party.

10 JUSTICE KAGAN: No, I understand that
11 that's your argument. And what I'm asking you
12 is that that argument applies just as well if,
13 instead of a party, we substitute another group
14 or an individual.

15 MR. FRANCISCO: Oh, I very much
16 disagree with that, Your Honor. If I'm an
17 individual and I want to directly bribe a
18 candidate, I can say to the candidate I will
19 either give you 50,000 cash, \$50,000 donation,
20 or spend \$50,000 on your behalf. I am directly
21 bribing that candidate with whatever benefit
22 I'm offering.

23 With conduit bribery scheme, you by
24 definition don't have that direct relationship
25 between the donor and the candidate.

1 JUSTICE KAGAN: Yeah, boy, you are --
2 you are --

3 MR. FRANCISCO: Instead, you have to
4 go through the party.

5 JUSTICE KAGAN: -- you are assuming a
6 lot there about people's, honestly, dumbness.
7 I mean, everybody knows where the money is
8 coming from when it's done this way. So the
9 fact that I have a party as a conduit, the fact
10 that I have a different private group as a
11 conduit, it's not hard to figure out where the
12 money is coming from either for that person,
13 the original source of the money, or for the
14 candidate.

15 MR. FRANCISCO: Yeah.

16 JUSTICE KAGAN: And all I'm suggesting
17 to you is that if your -- if your argument sort
18 of depends on, in fact, this is very
19 complicated, people don't do this, you know,
20 it's -- it -- it -- you know, you have to
21 devise a flow chart to see how it works, I can
22 be skeptical of that, but even if I put that
23 skepticism aside, it would -- it would apply
24 just as well to a conduit that was not a
25 political party, to a conduit that was another

1 private group or, indeed, to, you know, an
2 individual.

3 MR. FRANCISCO: So two responses to
4 that, Your Honor. The first is that I think
5 I'm simply assuming, whether it's dumb or not
6 dumb, I'm simply assuming the same chain of
7 reasoning that this Court adopted in McCutcheon
8 when it explained that the risk of conduit
9 bribery was not nearly as significant when you
10 had the party standing in between the donor and
11 between the --

12 JUSTICE KAGAN: See, I don't agree
13 with that. I think that McCutcheon says -- you
14 know, I was on the other side in McCutcheon,
15 but McCutcheon says we can -- we take these
16 circumvention rationales seriously.

17 Now they said there was no reason to
18 fear circumvention there, but the entire thrust
19 of the opinion was, if you could show us that
20 this was a way to circumvent the base limits,
21 that would be a reason to keep these limits in
22 place.

23 And -- and then, in evaluating why the
24 aggregate limits were not necessary in order to
25 further anti-circumvention goals, the Court

1 specifically pointed to this limit as part of
2 the status quo that would prevent
3 circumvention.

4 MR. FRANCISCO: So, Your Honor, maybe
5 we just have different readings of McCutcheon,
6 but I'm relying on the statement, for example,
7 where McCutcheon said there is not the same
8 risk of quid pro quo corruption or its
9 appearance when money flows through independent
10 actors to a candidate as when a donor
11 contributes to a candidate directly because,
12 the Court explained, when an individual
13 contributes to a party committee, the
14 individual must by law cede control over the
15 funds.

16 And then the Court went on to cite the
17 assistant attorney general's testimony about
18 how there should be "fewer cases of conduit
19 contributions directly to parties" because
20 donors who wish to influence elections or
21 officials will no longer need to attempt to do
22 so through conduit contribution schemes that
23 be -- can be criminally prosecuted. Instead,
24 they are likely to simply make unlimited
25 contributions to super PACs.

1 So that's the portion of McCutcheon
2 I'm relying on. I actually think that -- you
3 know, I -- I fully understand and appreciate
4 the concerns that you're raising, but I don't
5 think that they're tied to quid pro quo
6 corruption. I think they're tied to a broader
7 understanding of corruption that was adopted
8 by the McCutcheon dissenters, where it wasn't
9 simply limited to quid pro quo corruption but
10 rather the corrupting influence that many
11 believe that money can have in politics.

12 JUSTICE KAGAN: All of my questions to
13 you have assumed that that ship has sailed.
14 All of my questions to you have assumed that
15 what we're doing is preventing quid pro quo
16 corruption. And the portions of McCutcheon
17 that I could cite back to you are the portions
18 that make it quite clear that if there's a
19 limit that is necessary to prevent
20 circumvention of the base contribution limits,
21 that that is a reason to have that limit.

22 MR. FRANCISCO: Well, respectfully, I
23 think McCutcheon would have come out the exact
24 opposite way in that case because that was the
25 whole point of the aggregate limits.

1 JUSTICE KAGAN: I think that the point
2 of McCutcheon was that they didn't need -- in
3 those particular circumstance, with respect to
4 aggregate limits, that there wasn't a
5 circumvention problem.

6 But that is not to say that in these
7 particular different circumstances, with these
8 limits, which, indeed, McCutcheon specifically
9 pointed to, that there's also not a
10 circumvention problem. There is --

11 MR. FRANCISCO: So, yeah --

12 JUSTICE KAGAN: -- because of -- of
13 this thing that we started off with, with the
14 fact that coordinated contributions, you might
15 as well just be giving money to the candidate.

16 MR. FRANCISCO: McCutcheon pointed to
17 Colorado II, I think, once when it was batting
18 down the barrage of hypotheticals that were
19 asserted by the dissent in that case, but I
20 think that the thrust of the reasoning of
21 McCutcheon is that if you have an implausible
22 theory and zero evidence to back it up, that's
23 generally not going to be a strong First
24 Amendment case.

25 Here, you've got the same implausible

1 theory that you had in McCutcheon, the kind of
2 conduit bribery scheme, and they've got zero
3 evidence to back it up.

4 JUSTICE KAGAN: Thank you.

5 MR. FRANCISCO: I simply don't see how
6 you can hold up Colorado II and McCutcheon side
7 by side and say that both were correctly
8 decided.

9 JUSTICE KAGAN: Thank you.

10 CHIEF JUSTICE ROBERTS: Thank you.

11 Justice Gorsuch?

12 Justice Kavanaugh?

13 JUSTICE KAVANAUGH: Just to start, I
14 am concerned, as you said, that the combination
15 of campaign finance laws and this Court's
16 decisions over the years have together reduced
17 the power of political parties as compared to
18 outside groups, with negative effects on our
19 constitutional democracy. So I start from
20 that, and I'm trying to figure out how this
21 case fits into that with respect to political
22 parties and the strength of political parties.

23 On the other hand, you're also -- I'm
24 also concerned, of course, about quid pro quo
25 corruption and the circumvention concerns. And

1 one of the things that I think you rely on
2 pretty heavily are the earmark -- earmarking
3 rules to prevent the circumvention in this
4 case.

5 Now the other side and a lot of the
6 amici say the earmarking rules are really
7 pretty toothless in practice and really don't
8 do much. And this picks up on some of Justice
9 Kagan's concerns as well. They reach only the
10 most clumsy efforts to pass contributions to
11 candidates. They're -- it's difficult to
12 police. Donors rarely need to explicitly
13 earmark -- earmark to accomplish their goals.

14 So, if earmarking's a key to the quid
15 pro quo corruption piece of this, how can we be
16 sure that those are actually going to do much
17 in the real world?

18 MR. FRANCISCO: Sure. And what I
19 would say is earmarking is one part of it, and
20 violating the earmarking rules is, I believe, a
21 crime. But I think it's important to
22 understand where it fits within the mosaic and
23 why there are multiple prophylaxes here that
24 are aimed at preventing the type of quid pro
25 quo corruption at issue here.

1 I start out with the fact that the
2 money has to actually go through the political
3 party, so the donor who's trying to bribe a
4 single candidate has to go through the party
5 who's trying to get elected lots of candidates
6 and hope that the can -- that the party spends
7 that money on behalf of the candidate that the
8 donor is trying to bribe. That's Prophylaxis
9 1.

10 Prophylaxis 2 are the base limits.
11 The most they can contribute to the political
12 party is \$44,000.

13 JUSTICE KAVANAUGH: Can I stop you
14 there? Do you think those limits are
15 constitutional? I assume you think they're not
16 constitutional --

17 MR. FRANCISCO: Your Honor --

18 JUSTICE KAVANAUGH: -- and that in a
19 future case, kind of how this march has
20 proceeded, that you would argue those limits on
21 parties are not constitutional so as, to get
22 to my first point, to equalize the strength of
23 political parties and outside groups.

24 MR. FRANCISCO: Well --

25 JUSTICE KAVANAUGH: That's the real

1 source of the disadvantage, right? You can
2 give huge money to the outside group, but you
3 can't give huge money to the party, and so the
4 parties are very much weakened compared to the
5 outside group.

6 So, to cite that as a prophylaxis, I'm
7 not sure five years from now, three years from
8 now, you know, how that will look.

9 MR. FRANCISCO: Well, Your Honor, what
10 I can say is that we are not here challenging
11 that limit. And under Buckley and the
12 longstanding notion that --

13 JUSTICE KAVANAUGH: Do you think it's
14 constitutional?

15 MR. FRANCISCO: Your Honor, I don't
16 have a position on whether it's constitutional
17 or not. I'm willing to assume for the sake of
18 argument here that it's constitutional, but
19 it's still only the second of the two
20 arguments --

21 JUSTICE KAVANAUGH: You're not going
22 to want that cited back to you in a couple
23 years.

24 (Laughter.)

25 MR. FRANCISCO: The --

1 JUSTICE KAVANAUGH: Assume for the
2 sake of argument. Okay, that's -- all right.

3 MR. FRANCISCO: The -- the -- the
4 third thing I'd point to after that is the
5 earmarking rule, and it's actually a crime to
6 violate the federal earmarking rules.

7 The fourth thing I'd cite to you are
8 the disclosure requirements, which allow the
9 FEC and the public to follow the money to
10 figure out if something nefarious is going on.

11 The fifth, of course, is the bribery
12 laws, which make all of this a crime. So this
13 isn't an example of one prophylaxis, but -- but
14 it's five -- probably I could come up with
15 others -- prophylaxes on top of one another.

16 And if you kind of put it all
17 together, suppose that a donor does want to
18 bribe a particular candidate by going through
19 the party in coordinated spending. It's got to
20 hope that the -- that the party is going to
21 spend that money on behalf of the candidate
22 when the party's got a much broader set of
23 interests.

24 Lots of candidates are running
25 unopposed or they have very little chance of

1 winning or they're just generally in safe
2 seats. Parties don't want to spend money on
3 behalf of those candidates. So, if I'm trying
4 to submit a bribe to bribe that candidate, it's
5 not likely going to get through to the
6 candidate at the end of the day.

7 And if it does, it's going to be
8 pretty blazingly obvious. Why on earth is the
9 party spending all of this money on behalf of a
10 candidate who's in a safe seat or who's running
11 unopposed? That's when the disclosure
12 requirements kick in. That's when the FEC
13 kicks in. That's when the bribery laws kick
14 in. So all of these things work together.

15 JUSTICE KAVANAUGH: I -- I take that
16 happens sometimes. I mean, sometimes it's
17 pretty obvious, though, I think, in the real
18 world, and I think you would acknowledge that
19 too. But I'll stop there. Thanks.

20 CHIEF JUSTICE ROBERTS: Justice
21 Barrett?

22 JUSTICE BARRETT: No.

23 CHIEF JUSTICE ROBERTS: Justice
24 Jackson?

25 JUSTICE JACKSON: So I have a couple

1 questions. One is just I'm just trying to get
2 a clear answer on whether or not your client is
3 going to come back and attempt to suggest that
4 the guardrails that would still exist will no
5 longer exist in the future.

6 What do I mean by that? In
7 McCutcheon, your clients filed a brief saying
8 that the sky wouldn't fall if the Court struck
9 down aggregate limits because we still have
10 coordinated expenditure limits.

11 And now here we are today with your
12 clients saying no more coordinated expenditure
13 limits. And so I -- I'm wondering if -- and I
14 think others have --

15 MR. FRANCISCO: Mm-hmm.

16 JUSTICE JACKSON: -- sort of raised
17 that concern as well -- we're -- we're going to
18 be back here with the other kinds of limits
19 you -- with you making the same kinds of
20 arguments.

21 MR. FRANCISCO: Well, Your Honor, I
22 think different limits are on stronger footing
23 than others. I am not going to say that my
24 clients are not going to come back and try to
25 challenge other limitations. I think it's well

1 known that we have discomfort with different
2 parts of the campaign finance laws.

3 JUSTICE JACKSON: I understand --

4 MR. FRANCISCO: What I am saying is --

5 JUSTICE JACKSON: -- but then --

6 then -- then your argument --

7 MR. FRANCISCO: -- that that's not
8 what we're challenging here.

9 JUSTICE JACKSON: I appreciate that,
10 but -- but how can your argument be today that
11 these limits can fall and it will be okay
12 because the other limits exist if you can't
13 make a representation that we're still going to
14 have those other limits?

15 I mean, we're trying to --

16 MR. FRANCISCO: Mm-hmm.

17 JUSTICE JACKSON: -- prevent the kind
18 of circumvention that would indicate or allow
19 for quid pro quo corruption. I think
20 everybody's in agreement on that. And to the
21 extent that you say these kinds of limits
22 aren't going to be a problem to get rid of
23 them, that's because these other guardrails
24 exist, right?

25 MR. FRANCISCO: I think I can do that

1 in two ways. The first is just through a very
2 straightforward application of McCutcheon. I
3 think you can just march through the analysis
4 of McCutcheon, do nothing further, and say that
5 this is incompatible with McCutcheon.

6 JUSTICE JACKSON: But -- but --

7 MR. FRANCISCO: My friends are --

8 JUSTICE JACKSON: -- but -- but

9 McCutcheon was aggregate bans that functioned
10 as expenditure limits, right?

11 MR. FRANCISCO: And --

12 JUSTICE JACKSON: McCutcheon was a
13 different set of circumstances.

14 MR. FRANCISCO: Well, actually,
15 McCutcheon was a true contribution limit, and
16 that's why I actually think this is an easier
17 case than McCutcheon and an easier case than
18 Cruz. They're concerned about the dominos
19 falling forward. To me, this is an example of
20 the domino falling backward. I just don't see
21 how this can stand alongside of McCutcheon.

22 The second point that I would make,
23 though, is I could eliminate the -- the base
24 limit issue that Justice Kavanaugh and I were
25 just talking about. And I'll say -- look, I'll

1 put that to the side. I'm perfectly happy to
2 rely on the fact that the -- a would-be briber
3 has to assume that the party is going to do his
4 bidding as -- as part of the bribery scheme
5 here, that the earmarking rule is going to kick
6 in, that the disclosure requirements are going
7 to kick in, that the federal bribery laws are
8 going to kick in.

9 I -- I think that those four
10 prophylaxes would be fully sufficient --

11 JUSTICE JACKSON: Right. But I guess
12 my --

13 MR. FRANCISCO: -- wholly apart from
14 the base limits.

15 JUSTICE JACKSON: -- I -- I guess my
16 argument is, if we didn't have those other
17 things, would you -- would -- would you be
18 making the same argument?

19 MR. FRANCISCO: Your Honor, I might,
20 but I certainly don't need to given that we
21 have all of these other things. By
22 definition --

23 JUSTICE JACKSON: You have them today,
24 but you're not even -- you're not even
25 committing --

1 MR. FRANCISCO: Yeah.

2 JUSTICE JACKSON: -- to not
3 challenging them in the future.

4 MR. FRANCISCO: By definition,
5 coordinated party spending requires the
6 political party that's standing in between the
7 donor and the recipient of the bribe to be in
8 cahoots on the crime. I am willing --

9 JUSTICE JACKSON: Okay. Let me ask
10 you --

11 MR. FRANCISCO: I -- I -- I -- I guess
12 I am willing to assume that the bribery laws
13 aren't going to go away. I can't imagine that
14 Congress is going to eliminate the bribery
15 laws. So, frankly, I would be making the
16 argument if I had only those two prophylaxes --

17 JUSTICE JACKSON: All right. Let me
18 ask you --

19 MR. FRANCISCO: -- but I have multiple
20 ones in addition to those.

21 JUSTICE JACKSON: Let -- let -- let me
22 ask you about the record upon which we found in
23 Colorado II that there was circumvention
24 happening, that it was likely to happen in the
25 absence of these kinds of limits.

1 Are you prepared to represent that the
2 record that we considered in Colorado II is no
3 longer sound?

4 MR. FRANCISCO: I don't think I have
5 to say that that record is no longer sound
6 because I think the problem in Colorado II was
7 the legal standard that applied. Colorado II
8 defined corruption so that it wasn't limited to
9 quid pro quo corruption but instead included
10 the corrupting -- the so-called corruption
11 caused by influence and access in politics.

12 If you -- you accept that as a
13 definition of corruption, then I think that the
14 record in Colorado II arguably does satisfy
15 that standard. It's just that this Court has
16 repeatedly rejected Colorado II's understanding
17 of corruption.

18 JUSTICE JACKSON: All right. So what
19 is the implication of that now? I guess I'm
20 just trying to understand what factual basis we
21 have right now to make a determination as to
22 the impact of the rise of super PACs and the
23 advancements in disclosure technology. These
24 are things that you say --

25 MR. FRANCISCO: Mm-hmm.

1 JUSTICE JACKSON: -- have happened
2 subsequently post-Colorado II that should make
3 a difference in how we view the likelihood --

4 MR. FRANCISCO: Mm-hmm.

5 JUSTICE JACKSON: -- of quid pro quo
6 corruption.

7 And I just don't know that we in the
8 first instance can make that sort of
9 determination. Don't we have to have some sort
10 of record to determine what -- how super PACs
11 are actually operating and engaging with
12 contributions so that we can have something to
13 base our determination on?

14 MR. FRANCISCO: Well, we do have a
15 record in this case, Your Honor, and what this
16 record shows is that 28 states impose no
17 limitations on a party's ability to coordinate
18 with its candidates. Yet there's not a single
19 example of the type of conduit bribery they're
20 concerned about arising in those 28 states.

21 We have the 2014 amendment, which
22 tripled the size of the base limit for certain
23 purposes, completely eliminated the
24 coordination requirements. No example of a
25 single instance of quid pro quo conduit bribery

1 in that context.

2 We've got existing law, which allows
3 \$44,000 contributions to the party, which can
4 be coordinated in amounts ranging from \$60,000
5 to \$4 million depending on the race. Again,
6 zero example of the type of conduit bribery
7 that they are concerned about.

8 JUSTICE JACKSON: And Justice
9 Sotomayor says that's because Colorado II
10 exists.

11 MR. FRANCISCO: Your Honor --

12 JUSTICE JACKSON: That's because --
13 that's because we have a law that --

14 MR. FRANCISCO: -- Colorado II doesn't
15 apply in the 28 states that impose no limits.
16 It doesn't apply with respect to the 2014
17 amendment, which, of course, imposes no limits.

18 JUSTICE JACKSON: All right. I'll
19 have Mr. Martinez respond to that.

20 And, finally, can I just ask the
21 question about whether parties are being
22 treated better or worse? I -- I -- I
23 appreciate the concern about the changes in the
24 way in which they are related to parties, but I
25 understood that parties, as a result of

1 Colorado I, have no limits on independent
2 expenditures and that that in some ways
3 preferences them.

4 So can you help me to understand who
5 has the better set of rules here?

6 MR. FRANCISCO: Well, that certainly
7 doesn't preference them because PACs also can
8 engage in independent spending. And, in
9 addition, PACs aren't faced with the base
10 limits that we're faced with. They can take
11 billion-dollar contributions. We can take a
12 \$44,000 contribution.

13 So, to me, the real difference,
14 though, between other private entities and the
15 political parties is the theory of corruption.
16 They're --

17 JUSTICE JACKSON: And your answer to
18 Justice Kagan with respect to why, if we agree
19 with you, this isn't going to be limit to --
20 limited to parties, why is this going to be
21 limited to parties --

22 MR. FRANCISCO: Sure.

23 JUSTICE JACKSON: -- why -- what --
24 what was the answer to that?

25 MR. FRANCISCO: And -- and that's what

1 I was just getting at. It's -- it's the theory
2 of corruption. The concern with a lot of
3 private entities, individuals, super PACs, is
4 that they are going to directly bribe the
5 candidate. They're going to go to the
6 candidate and say I will give -- I will spend a
7 hundred thousand dollars on your behalf, a
8 million dollars, 10 million, if you do my
9 bidding.

10 JUSTICE JACKSON: But parties don't
11 have that same concern?

12 MR. FRANCISCO: That's not even their
13 theory. Nobody is asserting that a party is
14 bribing its candidates. When the DNC goes to
15 Senate can -- to Democratic --

16 JUSTICE JACKSON: No, in both cases,
17 the -- the -- the theory is that the donor is
18 using either a party or a PAC -- this is the
19 theory -- to effectuate this quid pro quo. So
20 why would it make a difference that a donor who
21 wants to do that is going through a PAC versus
22 a party?

23 MR. FRANCISCO: I don't think that's
24 necessarily the theory for PACs. I think the
25 ALF-CIO's PAC, you know, the Amazon.com PAC,

1 corporate PACs --

2 JUSTICE JACKSON: No, I mean in my
3 hypothetical. If the donor is trying to bribe
4 the candidate and, because of the contribution
5 limits on direct contributions, it says I'm
6 going to do this through a conduit scheme, I'm
7 just trying to understand the difference
8 between giving money to a party and having it
9 funneled to the candidate --

10 MR. FRANCISCO: Yeah.

11 JUSTICE JACKSON: -- that way versus
12 giving money to a PAC.

13 MR. FRANCISCO: So I --

14 JUSTICE JACKSON: Is there a
15 difference between the two?

16 MR. FRANCISCO: So -- well, yes, I do
17 think there's a difference.

18 JUSTICE JACKSON: What is it?

19 MR. FRANCISCO: And there are a couple
20 of differences. The first is that, in the
21 private context, you often do have a unity of
22 interests between the donor and the PAC. When
23 the AFL-CIO creates the AFL-CIO PAC in order to
24 further its own interests, I think the risk is
25 really less that the AFL-CIO is going to funnel

1 money through the PAC to the candidate. The
2 risk is that the AFL-CIO PAC is going to
3 directly bribe the candidate.

4 When it comes to political parties,
5 nobody thinks that if the DNC says to
6 Democratic Senate candidates I will only
7 support you if you oppose the Republican tax
8 bill, nobody thinks that that is a bribe,
9 whereas, if a private PAC went to a candidate
10 and asked -- and tried to extract the same
11 promise, I think a lot of people would think,
12 yeah, that's a bribe.

13 That's why my friend's theory depends
14 on this type of conduit bribery scheme using
15 the party as its mule, which this Court in
16 McCutcheon said is unlikely to work --

17 JUSTICE JACKSON: Thank you.

18 MR. FRANCISCO: -- prevented by other
19 things, and unnecessary given the rise in super
20 PACs.

21 CHIEF JUSTICE ROBERTS: Thank you,
22 counsel.

23 Ms. Harris.

24
25

1 ORAL ARGUMENT OF SARAH M. HARRIS
2 ON BEHALF OF THE RESPONDENTS
3 SUPPORTING THE PETITIONERS

4 MS. HARRIS: Mr. Chief Justice, and
5 may it please the Court:

6 Limits on party coordinated
7 expenditures unconstitutionally restrict core
8 election speech. Intervening developments have
9 demolished Colorado II's contrary holding.
10 Indeed, even under closely drawn scrutiny, this
11 Court's recent cases dictate invalidation for
12 many reasons.

13 First, these limits do not serve the
14 only valid interest of preventing quid pro quo
15 corruption or its appearance. Parties can't
16 corrupt candidates, and no evidence suggests
17 donors launder bribes by co-opting parties'
18 coordinated spending with candidates.

19 Second, there is a fatal mismatch
20 between any anti-corruption interest and
21 Congress's exception-riddled limits on party
22 coordinated expenditures, which would be a
23 nonsensically convoluted means of thwarting
24 donor corruption.

25 And, third, alternatives like FECA's

1 disclosure regime and earmarking rules already
2 check quid pro quos and are operating more
3 effectively today.

4 I welcome the Court's questions.

5 JUSTICE THOMAS: Ms. Harris, in your
6 reply brief, you say that the FEC would
7 continue to enforce its rules, but how does
8 they -- how do they do that when the government
9 argues that the rules are unconstitutional?

10 MS. HARRIS: Yes. We have not
11 disclaimed enforcement, and it's the same way
12 that the government has done so in cases such
13 as Windsor and in cases such -- such as Chadha.

14 The government and executive branch
15 has traditionally distinguished between
16 declining to defend the constitutionality of a
17 statute and continuing to enforce it,
18 particularly in situations like here, where
19 enforcement is something that preserves
20 judicial review.

21 Now you don't even have to agree with
22 that proposition. You can cast doubt on
23 government enforcement if you wish. The reason
24 this case is easy on that score for
25 jurisdictional purposes is that FECA also has a

1 private enforcement mechanism, and it is
2 abundantly clear that there is a very credible
3 risk of enforcement through that private
4 mechanism because many parties avail themselves
5 of it. There's a rich sort of D.C. Circuit
6 jurisprudence on how this happens.

7 So, again, for mootness, the other
8 side would need to establish that there is no
9 possible credible threat of enforcement either
10 way. I really don't think they can do that.

11 Now, again, I think the jurisdictional
12 issues are -- are a prelude to the merits, and,
13 on the merits, we just don't see anything left
14 of Colorado II's standing. That is why the
15 government is here not defending Colorado II
16 and not defending this particular law.

17 And that is for multiple reasons. I
18 think, if you just look at the theory of undue
19 influence upon which Colorado rested, that's
20 probably the cleanest holding in this case.
21 There is no way that you can look at Colorado
22 II and say it rested on the theory that we've
23 all been talking about now, which is preventing
24 circumvention of quid pro quo corruption or its
25 appearance.

1 Colorado II is rife with references
2 instead to a theory that there might be undue
3 influence if donors decide to try to evade
4 campaign finance restrictions so that they can
5 concentrate on having large donors at the
6 expense of attracting many donors. That is not
7 a theory of quid pro quo corruption that this
8 Court has allowed.

9 JUSTICE SOTOMAYOR: Counsel, I find it
10 difficult to accept your theory that Colorado
11 II rested on the undue influence rationale. It
12 certainly described our prior cases as doing
13 so, but, when it was talking about the
14 coordinated expenditure rule, it specifically
15 referenced the -- that it was to prevent quid
16 pro quo corruption.

17 So I think it's an unfair assessment
18 of Colorado II to say that one of its
19 underlying pins was knocked down in some way or
20 has been knocked down because it didn't rely on
21 that.

22 MS. HARRIS: Two responses. One, I
23 think it's very telling that the Court in both
24 McConnell and also McCutcheon and particularly
25 the McCutcheon dissenters said Colorado II

1 stands for the proposition that undue influence
2 is a valid theory of governmental interest, and
3 that is something that the Court in McCutcheon
4 rejected.

5 And, second --

6 JUSTICE SOTOMAYOR: Well, but it
7 wasn't what it relied upon for its
8 anti-corruption rationale --

9 MS. HARRIS: Respectfully --

10 JUSTICE SOTOMAYOR: -- which that's
11 why it went through the earmarking rules.
12 That's why it went through the disclosure
13 rules. And in both instances, all the
14 arguments you're making today it rejected, said
15 earmarking wasn't enough, and even with the
16 federal changes with respect to earmarking, the
17 nod -- the nods and winks that Justice
18 Kavanaugh pointed to don't even need to be
19 accepted as a possibility.

20 We know that -- that -- that
21 candidates in the past have asked donors to
22 donate to the Republican -- to the -- not the
23 Republican -- to a party as opposed to
24 themselves, knowing that the party was going to
25 spend the money on them.

1 It -- it's just all too easy to see
2 that coordinated expend -- coordinated
3 expenditures is just a different way of having
4 the party contribute to the candidate.

5 MS. HARRIS: So two responses, first
6 of all, with respect to Colorado II and why it
7 really does rely on undue influence and,
8 second, with respect to earmarking.

9 Colorado II: I will point to you
10 multiple parts of Colorado II. I would start
11 with page 456, Footnote 11, where the Court
12 talks about combatting circumvention of
13 contribution limits designed to combat the
14 corrupting influence of large contributions to
15 candidates from individuals, or page 460, where
16 Colorado II is focused on the idea that a
17 candidate enjoying the patronage of affluent
18 contributors would have a strong incentive to
19 promote circumvention as a step towards
20 reducing the number of donors requiring
21 time-consuming cultivation.

22 Or I'd point you to Colorado I, where
23 the -- where the Court recognizes that the
24 whole point of the restrictions was to -- to
25 prevent certain amounts from being spent for

1 certain offices and certain states.

2 Now we can sort of -- and -- and I
3 think that's why this Court has characterized
4 Colorado II as resting on that basis.

5 Earmarking: I think that just
6 reflects --

7 JUSTICE KAGAN: Well, if I could just,
8 Ms. Harris -- I mean, you know, Colorado II has
9 both because, in that period, it wasn't only
10 quid pro quo corruption. So there's certainly
11 language that you can pick out from Colorado II
12 in the way you just did that goes beyond quid
13 pro quo corruption.

14 But there's no question that it was
15 talking about quid pro quo corruption as well.
16 You know, the risk of coordinated expenditures
17 was that they could be as useful to the
18 candidate as cash and, thus, could be given as
19 quid pro quo for improper commitments from the
20 candidates. That was a very important part of
21 Colorado II. As useful as cash, could be given
22 as a quid pro quo.

23 MS. HARRIS: Again, the problem with
24 that is that we are now in a world of
25 McCutcheon, where the reason why Colorado II

1 may have even mentioned that theory was not
2 something that was borne out by the evidence it
3 was talking about. It just said we will defer
4 to Congress on this. We will not look for
5 evidence. We will not look for narrow
6 tailoring. We won't look for substantiation.

7 And even if I -- I -- I agreed with
8 that characterization of Colorado II, which I
9 don't, I think it really is about undue
10 influence and you can't just sever that part
11 out, the problem is we also now have an
12 evidentiary record and a series of amendments
13 that completely demolish the idea that what
14 Congress was trying to do here is ferret out
15 quid pro quos.

16 JUSTICE KAGAN: But that -- that's a
17 different question. That's not a -- that's not
18 something that focuses on what Colorado II was
19 based on. That's the question of whether
20 something has changed after Colorado II. And
21 I -- I guess I -- I don't really quite
22 understand your argument that it has.

23 MS. HARRIS: Okay. Well, I guess
24 three levels of this. One is doctrinally
25 because that's the first problem with Colorado

1 II. I think Colorado II, when it's looking at
2 tallying and other things, even if I spot you
3 are we talking about quid pro quo, are we
4 talking about something else, I think it's
5 undue influence, we disagree, you still are in
6 a world where Colorado II cited by McConnell as
7 an example of super-duper deference to Congress
8 where there's no narrow tailoring.

9 Doctrinally, that's been thrown out.
10 That is incompatible with McCutcheon and Cruz,
11 where this Court says no, narrow tailoring is
12 actually exacting, rigorous, requires
13 legislative findings, which we don't have here
14 in evidence.

15 JUSTICE KAGAN: So I'll -- I'll --
16 I'll sort of spot you that, that there has to
17 be some kind of tailoring, that, you know,
18 whether Colorado -- I don't think Colorado II
19 is inconsistent with that, that we certainly
20 have, as a function of McCutcheon and Cruz,
21 that the restriction has to be connected, has
22 to have, like, a means-end connection to the --
23 the circumvention interest.

24 So I'll -- I'll spot you that one. I
25 don't think that this has any difficulty

1 meeting that one.

2 MS. HARRIS: And I think the
3 difficulties are rampant, and the exception
4 scheme that Congress has designed shows why.
5 If you're looking to ferret out quid pro quo
6 corruption, the idea that you think that people
7 in Wyoming are more corrupt than people in
8 California and need to be subject to, like, 10
9 times less the limits for races cannot be
10 explained by some sense of detecting quid pro
11 quo corruption, not least because there's no
12 evidence of it.

13 If you think that there's a real
14 incentive for donors to use party coordinated
15 expenditures, co-opt the party, break a lot of
16 campaign finance rules that are criminal
17 penalties in the meantime just to pass through
18 a bribe, you would certainly wonder why
19 Congress would then create a gaping hole in the
20 scheme in 2014 by saying that the one thing
21 where you can accept three times the normal
22 contributions to parties and the one thing --
23 one of the things where you can have unlimited
24 party coordinated spendings is in recounts and
25 in election litigation, which is like ground

1 zero for extremely high-stakes
2 election-dispositive situations.

3 And then you also can't explain the
4 state limits. Why is it that state -- state
5 committees but not national committees can do
6 unlimited party coordinated spending on "get
7 out the vote" efforts and everything else?

8 Nothing in this scheme in any way
9 matches some sort of quid pro quo interest.
10 And that's only, again, first-level mismatch.
11 Then we get to the evidence. The state
12 evidence that the Petitioner has talked about
13 with respect to the 28 states in which there
14 are no limits on party coordinated
15 contributions or expenditures is very telling
16 because, again, of those 28, you can even look
17 for, like, a but-for world of what would happen
18 in this case if you didn't have this one limit.

19 That but-for world exists in Arizona
20 and -- and West Virginia. Those states have
21 very similar schemes to the federal scheme.
22 They just don't have party coordinated
23 expenditure limits. And there's no evidence
24 from those states that the sky has fallen, that
25 there's rampant quid pro quos being passed

1 through, or anything else.

2 So you can -- you can do it as a
3 mismatch problem with this law. You can do it
4 as a lack-of-evidence problem with this law.
5 Under the framework of McCutcheon, it just
6 doesn't work, and that's -- that explains our
7 position in this case.

8 JUSTICE KAVANAUGH: Are limits on
9 outside groups' coordinated expenditures
10 constitutional?

11 MS. HARRIS: We don't have a position
12 on that, and we think they're easily
13 distinguishable, and here is why. The real
14 problem with party coordinated expenditures and
15 the reason why I think this case comes in with
16 built-in limits even more so than a case like
17 McCutcheon is that the encroachment here is
18 upon 200 years of history that preceded FECA,
19 where parties and candidates were joint --
20 engaged in joint activity all the time.
21 Parties actually ran the campaigns.

22 Parties and candidates have a unique
23 confluence of influence -- or influence and
24 interests, which is both why there's no
25 possibility that a party would itself bribe a

1 candidate and also explains why it's different
2 from these other actors.

3 As Petitioners' counsel noted, there
4 may well be a risk that individual donors or
5 individual PACs might try to engage in a bribe
6 scheme through coordinated expenditures with a
7 candidate. That might differentiate this case,
8 where no one is arguing, not even Colorado II
9 accepted the proposition, that the party itself
10 is a source of -- of potential quid pro quos.
11 Rather, it's the indirectness of the scheme.

12 And I think that limits that. And I
13 also think the greater First Amendment
14 interests of a party coordinating with a
15 candidate whose, you know, standard bearer is
16 the candidate and engaging in fundamental
17 communications about how to time campaign ads,
18 how to spend scarce resources, how best to get
19 across the party's message, what deviations are
20 acceptable, is fundamentally different as an
21 integral part of our democracy --

22 JUSTICE KAVANAUGH: Are -- are limits
23 on contributions to parties constitutional in
24 the government's view?

25 MS. HARRIS: We aren't -- we -- we

1 aren't saying that they're unconstitutional,
2 and we also think they are distinguishable for
3 some of the reasons I talked about. One is the
4 distinction in the First Amendment values in
5 this particular scheme, which is party
6 coordinated expenditures involve joint speech,
7 joint strategizing. The party can say no to
8 spending on particular things if it thinks the
9 candidate's not running the campaign right in
10 ways that just cutting a check don't do.

11 And, second of all, if you want to
12 limit out contributions to parties and preserve
13 limiting principles, we're back to the way that
14 this law works. Unlike contribution limits,
15 which are just you can't spend more than \$5,000
16 for anyone, this scheme has a welter of
17 completely bizarre exceptions that are --
18 that -- that really exacerbate any mismatch for
19 quid pro quos.

20 JUSTICE KAVANAUGH: Do you think it
21 was constitutional before 2014?

22 MS. HARRIS: No.

23 JUSTICE KAVANAUGH: Okay.

24 MS. HARRIS: But I think it was --

25 JUSTICE JACKSON: Ms. Harris, I -- I'm

1 sorry. Keep going.

2 MS. HARRIS: Oh, sorry. I think it's
3 even more obviously unconstitutional after
4 2014.

5 JUSTICE KAVANAUGH: Yeah.

6 JUSTICE JACKSON: I guess I'm still
7 not clear on the first question that Justice
8 Kavanaugh just asked you, which was, to the
9 extent that we have donations being made to
10 parties and donations being made to PACs, if
11 the theory is not that either the party or the
12 PAC itself is the one who's trying to bribe the
13 candidate, if the theory is that the donor is
14 trying to bribe the candidate through this
15 conduit, why are parties different than PACs?

16 MS. HARRIS: So parties are different
17 than PACs -- and I don't mean to resist the
18 hypothetical, but I think it's important. PACs
19 themselves can also be the source of the
20 bribery.

21 JUSTICE JACKSON: They can also, fine.

22 MS. HARRIS: Yes.

23 JUSTICE JACKSON: I'm -- both -- we
24 have a lovely PAC who's not trying to bribe the
25 candidate. We have a lovely party that's not

1 trying to bribe the candidate. We have a
2 malicious donor who is trying to bribe the
3 candidate, and because of the limits on their
4 ability to give campaign contributions
5 directly, they would like to use a conduit.

6 What I don't understand is what
7 difference it makes that it's a party or a PAC
8 in that circumstance.

9 MS. HARRIS: Okay. So bracketing the
10 PAC bribery hypothetical, I still think parties
11 are different, and one of the reasons is
12 historical, which explains the unique identity
13 of interests between the candidate and the
14 party that differentiate -- differentiates
15 PACs.

16 The reason why there is no -- why --
17 why the sort of party coordination is in some
18 ways a bulwark against the donor circumvention
19 theme -- scheme is that parties and candidates
20 want -- parties exist to get the candidate
21 elected. Parties do not want to spend money in
22 ways that squander electability of candidates.
23 Parties are insulated from -- from that because
24 they have the candidate -- you know, candidate
25 appears on the ballot as the party's name.

1 That is all very different. And that's part of
2 a rich history of parties and candidates being
3 completely entangled. It's a very different
4 history than any other outside group.

5 And, again, that's not just for
6 purposes of donor circumvention in which there
7 are real reasons why parties in particular will
8 be reluctant to embark upon this campaign
9 finance violating scheme but also the fact that
10 PACs, as Petitioners' counsel noted, are, in
11 fact, often aligned with donors in ways that
12 don't correspond to parties. So the AFL-CIO
13 PAC and the AFL-CIO donor example is a good one
14 to look at that.

15 CHIEF JUSTICE ROBERTS: Thank you.
16 Thank you, counsel.

17 Justice Thomas?

18 Justice Alito?

19 JUSTICE ALITO: One of the reasons for
20 heightened scrutiny is to ferret out whether
21 the asserted reason for a challenged law or
22 provision is actually the real reason for the
23 provision. And I would appreciate it if you
24 would just say a few words about what can be
25 inferred about the real reason for the

1 provision at issue here from the various
2 exceptions and limitations and the -- the
3 differences in the amount that can be
4 contributed -- that -- that -- of coordinated
5 expenses that are allowed in most House
6 districts and in those where the candidate runs
7 at large in the state.

8 MS. HARRIS: Yes. We think the design
9 of that scheme completely refutes any quid pro
10 quo interest and reveals, as Colorado I
11 signaled, that the real interest is in trying
12 to have Congress and its incumbents prescribe
13 how much money is appropriate in particular
14 contexts, how much money should be spent in
15 particular election contexts.

16 I think the Senate limits are the best
17 example of that. They vary in amount. They're
18 keyed not to some sense of corruption but to
19 state population, which is a proxy for perhaps
20 how much a media market would cost or how much
21 an election would cost to run. So, again, you
22 have a situation where, in Wyoming, the party
23 contribution limit is like a hundred and --
24 under \$125,000, whereas, in California, because
25 of the state population differential, it's like

1 \$3.3 million.

2 And that cannot be explained by some
3 sense that people in Wyoming are more corrupt
4 than people in California are or even that that
5 is an appropriate amount to spend on races
6 given that a lot of Senate campaigns take place
7 in smaller states, say, in Montana, that might
8 decide control of the Senate. So it's very
9 difficult to discern any quid pro quo rationale
10 from that.

11 And on top of that, the other
12 exceptions, I think, underscore the problem,
13 the state limits that I mentioned with respect
14 to having exemptions for "get out the vote"
15 efforts or bumper stickers. If there's any
16 difference in corrupting potential when a donor
17 decides it wants to somehow ferry through a
18 quid pro quo scheme because there's unlimited
19 money on bumper stickers versus something else,
20 no one has pointed to one.

21 And then we've sort of thoroughly
22 canvassed the national exceptions as well for
23 recounts in litigation. They just -- in no
24 sane world are those keyed to some sort of
25 concern with quid pro quos. The only

1 reasonable explanation is they're keyed to
2 judgments, impermissible judgments, about how
3 much money is appropriate to spend on
4 particular forms of campaigning or election
5 speech in particular kinds of states.

6 JUSTICE ALITO: Thank you.

7 CHIEF JUSTICE ROBERTS: Justice
8 Sotomayor?

9 JUSTICE SOTOMAYOR: We no longer have
10 expenditure limits, so there isn't any judgment
11 as a courtesy of this Court. So there no
12 longer is a judgment about how much is
13 appropriate on expenditure limits. What is at
14 issue is a very discrete issue of how much is
15 appropriate to avoid the appearance of
16 corruption with respect to contributions.

17 Now you said something to Justice
18 Kavanaugh that I wanted to underscore. Your
19 brief and Respondents' -- Petitioners' brief
20 spent a lot of time explaining why Colorado II
21 should be overruled because of the changes in
22 the 2014 law.

23 You disavowed that. You think the law
24 was unconstitutional without those changes,
25 correct?

1 MS. HARRIS: I think -- yes, I think
2 it was -- the doctrinal changes in this Court's
3 jurisprudence would be alone sufficient. I
4 think this is just an easy case because you
5 could say those intervening changes in
6 doctrinal --

7 JUSTICE SOTOMAYOR: Why?

8 MS. HARRIS: -- plus the amendments.

9 JUSTICE SOTOMAYOR: Before the change
10 that permits national convention support came
11 in the -- came in the wake of eliminating
12 public funding of conventions, so it's a way to
13 make that up.

14 With respect to the party
15 headquarters, headquarters, once they're built,
16 are not tied to any particular candidate. So
17 there's not a problem.

18 With respect to ballot counting, the
19 election has already happened. That was the
20 whole Cruz case premise, which is how can there
21 be a quid pro quo corruption after an election?
22 I dissented there. Nevertheless, that's the
23 Court's holding. So why would it rely on that
24 change here?

25 With respect to the issue of donation

1 for party headquarters, that was part of the
2 FEC regulations long before the 2014 elections.
3 So I think you were wise to give up those
4 changes as a ground for saying this law is
5 unconstitutional.

6 What you have to rely on is saying
7 that McCutcheon and -- and Citizens United and
8 Cruz changed the legal landscape, correct?

9 MS. HARRIS: So, to be very clear, I'm
10 relying on both. I think, certainly, the
11 doctrinal changes alone would be sufficient,
12 but I just want to -- and the reason I think
13 the 2014 amendments are important is I -- I
14 think taking a blinkered look at the import of
15 being able to have unlimited party coordinated
16 expenditures on not only election recounts but
17 litigation over the election is a pretty big
18 deal. The election hasn't been called at that
19 point. That's actually the heat of the moment
20 in the election when one might think --

21 JUSTICE SOTOMAYOR: But you can't --

22 MS. HARRIS: -- if you were --

23 JUSTICE SOTOMAYOR: -- change the
24 voting.

25 Now can I go back to that point?

1 Whether it was McCutcheon, Cruz -- or Cruz,
2 both cases relied in large measure on the lack
3 of coordinated contribution limits, and you are
4 trying to take that central part of our
5 precedent out of the equation now.

6 MS. HARRIS: So just to push back, I
7 don't think both of those precedents treated
8 the party coordinated expenditure limits as the
9 only thing preventing a different result in
10 those cases. Quite the contrary.

11 What the Court said in particular in
12 McCutcheon, it mentioned the party coordinated
13 expenditure limits almost as an aside.

14 What was far more important in that
15 case and, again, the reason why we're in a
16 multiple prophylaxis/unprophylaxis universe
17 here is the Court was also talking about the
18 increased efficacy of earmarking regulations,
19 went on for quite some time with respect to
20 how that was something not even considered
21 in -- in McConnell, let alone in Buckley, as
22 well as the enhanced disclosure requirements
23 and the fact that with a click of the mouse you
24 can now see exactly whether there is some
25 grounds to be suspicious of quid pro quos going

1 on because of otherwise irrational donor
2 behavior.

3 So, no, I don't think the party
4 coordinated expenditures were treated as the be
5 all and end all keeping those -- those schemes
6 from otherwise being unconstitutional, nor
7 could it.

8 JUSTICE SOTOMAYOR: And those
9 earmarking rules, if you look at the CREW
10 amicus, you will note that they weren't
11 completely effective in starting -- in stopping
12 the -- the -- the earmarking that occurred in
13 that case.

14 MS. HARRIS: Respectfully, I think
15 that is just an effort to relitigate what
16 McCutcheon looked at and what McCutcheon said,
17 which is that the breadth of earmarking refuted
18 the observation in Colorado II that earmarks
19 are just the --

20 JUSTICE SOTOMAYOR: In McCutcheon, we
21 were looking at expenditures. We were not
22 looking at contributions. And that's what the
23 CREW amicus brief example was talking about.

24 MS. HARRIS: McCutcheon was a case
25 about the aggregate contribution limits. And,

1 again, the Court said that earmarking
2 restrictions had grown more efficacious over
3 time because the FEC significantly broadened
4 them and you have to run the risk of very
5 significant penalties if you use earmarking to
6 circumvent contri- -- contribution limits.

7 CHIEF JUSTICE ROBERTS: Justice Kagan?
8 Justice Gorsuch, anything further?
9 Justice Kavanaugh?

10 JUSTICE KAVANAUGH: Should we be
11 concerned about the overall architecture of our
12 jurisprudence having weakened or disadvantaged
13 political parties as compared to outside
14 groups?

15 MS. HARRIS: I think you should be
16 concerned with that. I think the even greater
17 concern beyond the disadvantage to political
18 parties that was wrought when FECA sort of
19 overturned over a century's worth of
20 uninhibited coordination between parties and
21 candidates is just the see-sawing of the
22 Court's jurisprudence that would happen if
23 Colorado II remained an outlier and remained in
24 place to sow mischief.

25 So I think it's twofold. It's, one,

1 the practical consequences for parties in truly
2 core election speech, and, two, what it means
3 for the sweep of this Court's jurisprudence in
4 this incredibly important area.

5 JUSTICE KAVANAUGH: And I think
6 Respondents or Intervenor raises questions
7 about whether a ruling in Petitioners' favor
8 here really would strengthen parties or
9 actually would weaken parties. They have some
10 arguments that would -- a ruling in
11 Petitioners' favor would actually weaken
12 parties qua parties.

13 Do you have a response to that?

14 MS. HARRIS: I guess the vantage from
15 which we're looking at it is the First
16 Amendment vantage in the first instance.
17 Regardless of how this works out in terms of
18 who gets more money when and who does what with
19 the money, the bigger issue is, is there a
20 restriction right now that is encroaching on
21 truly central campaign speech?

22 And the answer to us is manifestly
23 yes. And the answer is to allow the First
24 Amendment to do its work so that parties can
25 engage in this coordination with candidates in

1 heartland issues for campaigns and let the
2 chips fall where they may in terms of other
3 things.

4 We don't think this is some -- that a
5 restriction on what parties historically did is
6 some special benefit to them.

7 JUSTICE KAVANAUGH: Thank you.

8 CHIEF JUSTICE ROBERTS: Justice
9 Jackson?

10 JUSTICE JACKSON: But, of course,
11 whether or not the restriction is truly
12 encroaching on First Amendment values depends
13 on the application of the test and the extent
14 to which the government has a good legitimate
15 reason and is narrowly tailored in its
16 approach, right? So it's not just is this
17 about speech. We have tests that apply. And I
18 think that's what we're trying to ferret out.

19 So let me just ask you about the
20 emphasis in your brief that suggests that the
21 parties are special, I'm sort of back to this,
22 and are entitled to special First Amendment
23 protections.

24 So are -- are you prepared to say here
25 that other entities, including state

1 committees, PACs, super PACs, won't get or
2 aren't entitled to the same treatment as
3 parties?

4 MS. HARRIS: We're saying they're
5 different, and we're saying that's grounded in
6 this Court's cases in important ways. We're
7 not asking for a special First Amendment rule
8 for parties.

9 What we're saying is the history of
10 parties' coordination with candidates and the
11 manner in which they coordinate with candidates
12 puts them on different footing both in terms of
13 the particular First Amendment interests we're
14 talking about here, which go to heartland
15 issues of how does a party who selected its
16 candidate through its own primary process and
17 has a very special interest in ensuring that
18 the candidate hews to the platform, translate
19 that into actions in a campaign, and also the
20 lack of a comparable quid pro quo interest.

21 So, yes, they are special in that
22 sense, but it's not a sort of special
23 constitutional role. It's just a practical
24 role that reflects just the relationship in
25 practice.

1 JUSTICE JACKSON: And one that we
2 could rely on when the super PACs come next if
3 you -- if this wins.

4 MS. HARRIS: That is an important --
5 I think --

6 JUSTICE JACKSON: It is an --

7 MS. HARRIS: -- that is a limiting
8 principle --

9 JUSTICE JACKSON: -- important --

10 MS. HARRIS: -- that makes this
11 case unique, along with the fact that this
12 restriction, unlike other ones you might see,
13 isn't just a uniform, you know, X number of
14 dollars for everyone restriction.

15 JUSTICE JACKSON: Are there limits
16 right now on party-to-candidate contributions?
17 There are, right?

18 MS. HARRIS: Yes, there are limits on
19 party-to-candidate contributions. Parties can
20 donate -- it's \$5,000 with a curly-Q with some
21 exceptions for certain instances.

22 JUSTICE JACKSON: And so is it --
23 are those limits also at risk based on the
24 arguments that you're making here today?

25 MS. HARRIS: I don't think so. I

1 think you could cabin those in a couple of
2 different ways. And, again, the two I would
3 offer you if this is a concern, one is that the
4 coordinated expenditures involve different
5 First Amendment -- heightened First Amendment
6 restrictions. Again, they are -- they're
7 prohibiting the interchange of campaign
8 strategy.

9 JUSTICE JACKSON: But I thought we
10 said coordinated -- this goes back to the Chief
11 Justice's very first question -- that
12 coordinated expenditures are like
13 contributions. So, if we have limits on party
14 contributions, I don't understand the
15 distinction.

16 MS. HARRIS: Okay. So I think it
17 is correct and Colorado II recognizes they're
18 the same for one purpose, which is the
19 pocket -- the -- from the vantage of the
20 candidate's bottom-line financing, you can say,
21 if the party pays for it or if the candidate
22 gets money to pay for it, it's the same sort of
23 pocketbook outcome.

24 But I think there's a world of
25 difference, and the Court's cases recognize

1 this, even Buckley, in saying the
2 contribution -- the -- the First Amendment
3 value of a contribution is simply an expression
4 of support that doesn't come with any sort of
5 input on the campaign or anything else.

6 That just is not true for party
7 coordinated expenditures even if we're talking
8 about the sort of simple hypothetical of
9 bill-paying and setting aside coordinating on
10 an advertising campaign about what the -- how
11 the platform should be communicated. So that's
12 the first distinction.

13 But, if you're --

14 JUSTICE JACKSON: It's a different
15 message?

16 MS. HARRIS: It's a --

17 JUSTICE JACKSON: Is that what you're
18 saying?

19 MS. HARRIS: I think it's just a
20 different level of First Amendment
21 communications. So it's above and beyond an
22 expression of support, yes, and in ways that I
23 think implicate even more heartland concerns
24 about elections. Again, you can put that
25 aside. You can not want to make that

1 distinction. That's fine.

2 I think the second distinction is what
3 I said before, which is contribution limits are
4 like \$5,000 or 1,000 or whatever it is, they're
5 flat. That differentiates contribution limits
6 from the acute mismatch in this case, which
7 inheres in the fact that this scheme, the
8 exceptions in the scheme, cannot be matched to
9 a quid pro quo interest precisely because
10 they're variable. They vary based on state
11 population.

12 JUSTICE JACKSON: Yeah. Very, very
13 complicated, very variable. I understand.

14 MS. HARRIS: It's not just
15 complicated, though.

16 JUSTICE JACKSON: Yeah. Yeah.

17 MS. HARRIS: I think it is they're not
18 keyed to quid pro quos in ways that you could
19 argue that contribution limits that are flat
20 might be different.

21 And I think that's why the way this
22 Court's protected sort of against the dominos
23 is the McCutcheon framework. You have to look
24 at each case at each restriction. Is it trying
25 to advance a quid pro quo corruption interest

1 or not? And how is it tailored? How is that
2 particular law tailored to advancing that
3 interest? Is there specific evidence? There
4 might be different evidence, not the 28 states
5 we have here, but some other evidence if and
6 when the Court is called upon to address those
7 other limits.

8 JUSTICE JACKSON: Thank you.

9 CHIEF JUSTICE ROBERTS: Thank you,
10 counsel.

11 Mr. Martinez.

12 ORAL ARGUMENT OF ROMAN MARTINEZ

13 COURT-APPOINTED AMICUS CURIAE

14 IN SUPPORT OF THE JUDGMENT BELOW

15 MR. MARTINEZ: Mr. Chief Justice, and
16 may it please the Court:

17 Petitioners have made very clear this
18 morning that they're trying to ask you to
19 overturn not just Colorado II but really 50
20 years of campaign finance law. This is a
21 highly politicized case, and I think the first
22 place to start is with jurisdiction.

23 No Petitioner here is properly before
24 the Court. When Mr. Francisco was asked about
25 that question, he went right to Vice President

1 Vance, so I'd like to talk about why Vice
2 President Vance -- Vance's claim is moot, and
3 there are two reasons.

4 First, Vice President Vance has
5 repeatedly denied having any concrete plan to
6 run for office in 2028. Petitioners say that
7 uncertainty is enough to prevent mootness.
8 That's wrong as a matter of law. The
9 heightened test for mootness that they invoke
10 only applies when the mootness doctrine is
11 being invoked to potentially manipulate the
12 judicial system. Usually, it's a defendant;
13 sometimes it's a respondent; and, usually, that
14 person is voluntarily stopping the conduct that
15 triggers the injury.

16 You made all this clear in your 2001
17 City News case, which is really on all fours
18 here. There's no manipulation of the facts in
19 this case, so Vice President Vance's claim is
20 moot unless he has a concrete plan to run.
21 Does he? Well, his public statements
22 repeatedly over and over and over over the
23 course of the past year, including in new
24 comments that were reported this morning by NBC
25 News, show that he has no concrete plan.

1 If any other plaintiff in this Court
2 told you that his injury is speculative, that
3 it's uncertain, that it's premature, that it
4 might happen and it might not happen, they
5 wouldn't have a prayer under Article III. The
6 same rules apply to the Vice President.
7 There's no politician exception to Article III.

8 Even if you disagreed with me about
9 Vice President Vance's standing because of his
10 concrete plan to run, there's also the absence
11 of any real-world credible enforcement threat.
12 The executive order bars the FEC from enforcing
13 the law. No one thinks President Trump is
14 going to enforce this law and target his own
15 Vice President. And the Solicitor General's
16 suggestion that private parties are the ones to
17 worry about runs head-long into Whole Women's
18 Health, where you said that the threat of
19 private party enforcement cannot create Article
20 III jurisdiction.

21 I'd love to talk about the merits as
22 well and the radical nature of the arguments we
23 heard this morning, but I -- I also welcome the
24 Court's questions.

25 JUSTICE THOMAS: Well, before you do

1 that, would you address the committees also in
2 your mootness --

3 MR. MARTINEZ: Absolutely. I think
4 the committees are -- are an easier case for us
5 because the committees lack any ability -- they
6 had no statutory right to get out of the
7 district court in the first place.

8 There's a federal statute that governs
9 who is allowed to take advantage of the
10 expedited procedures, and that's Section 30110.
11 It allows only three entities to go up in an
12 expedited posture for mandatory en banc
13 interlocutory review: The FEC, eligible
14 voters, and the national committee of the
15 political party.

16 The national committee of the
17 political party does not include the NRSC. You
18 said that expressly in the DSCC case. You
19 literally said that expressly after much
20 discussion of the issue at oral argument. More
21 importantly, the text of the statute doesn't
22 allow it. FECA has a statutory definition that
23 defines the term "national committee," and it
24 unambiguously refers only to, in this context,
25 the RNC.

1 It's not a surprise, given what I just
2 said, that my friend on the other side did not
3 address the text of the statutory definition
4 until page 10 and a half of his second reply
5 brief in this case. They have no textual
6 argument. Now what he said was he's got a
7 textual argument based on an amendment that
8 happened 50 years later in 2002.

9 Well, that -- that doesn't work
10 either. The statutory amendment that he's
11 talking about only -- did not purport to
12 override the definition. It didn't purport to
13 override the DSCC case. So I think it's
14 telling that when my friend got up and he was
15 asked about the committees, he said, well,
16 let's talk about Vance because he thinks Vance
17 is really the only play -- the only way to get
18 there.

19 The committees also have other
20 problems too. The enforcement issue is equally
21 as strong as to the committees. And the -- the
22 committees can only have standing here if they
23 actually have rights under this law, which they
24 don't because they need to rely on an invalid
25 assignment regulation that doesn't survive

1 Loper Bright.

2 CHIEF JUSTICE ROBERTS: Mr. Martinez,
3 if the Vice President came to you and, like, I
4 want legal advice on whether or not I can
5 violate these limits because I've heard that
6 somebody said don't worry about it, they're not
7 going to be enforced, would you tell him to go
8 ahead, or maybe one thing would you tell him to
9 do is, well, you ought to be careful because
10 maybe somebody else will be in the White House
11 next term and they may decide that prosecuting
12 this, what is a violation, makes sense?

13 MR. MARTINEZ: Here's what I would
14 tell him, Mr. Chief Justice. I would tell him
15 that Congress has envisioned this exact
16 scenario, and Congress has created in Section
17 30108 of FECA a specific procedure by which any
18 person can go to the FEC and request an
19 advisory opinion about whether their conduct is
20 lawful. And if the FEC says yes, it's lawful,
21 as they obviously would here because they think
22 the conduct is lawful, then there's a statutory
23 safe harbor that would provide total relief,
24 total protection to the Vice President --

25 CHIEF JUSTICE ROBERTS: Well, but is

1 it --

2 MR. MARTINEZ: -- from any enforcement
3 action or any prosecution.

4 CHIEF JUSTICE ROBERTS: Is that true
5 with respect to private enforcement actions?

6 MR. MARTINEZ: I don't know whether
7 it's true with respect to private enforcement
8 actions, but, Your Honor, in Whole Women's
9 Health, this Court made very clear that private
10 enforcement actions are not a basis to -- to --
11 to recognize a case against the government.

12 And -- and I think -- and I'd have to
13 go back and look -- but I -- I imagine that the
14 state -- safe harbor would apply just as
15 equally to private enforcement actions because,
16 otherwise, what would be the value of having
17 the safe harbor? But I -- I concede I haven't
18 looked at that question.

19 CHIEF JUSTICE ROBERTS: Well, that's
20 the -- yeah, I -- that was kind of the point of
21 the question.

22 (Laughter.)

23 CHIEF JUSTICE ROBERTS: But -- so you
24 would tell him don't worry about a thing, go
25 ahead and -- and it's going to be fine?

1 MR. MARTINEZ: Well, I -- I would tell
2 him there's a statutory mechanism to take
3 advantage of. And -- and I don't see why they
4 couldn't have done that. If they had done
5 that, you know, when -- when the administration
6 came into power, the -- the President is in
7 control of the executive branch. We heard
8 about that yesterday. I think the FEC would
9 have taken the position it's taken now. They
10 would have given him an advisory opinion, no
11 problem.

12 But they don't want that. They want
13 an advisory opinion not from the FEC; they want
14 an advisory opinion from this Court, and that's
15 why they're coming to this Court with a bunch
16 of plaintiffs who either don't have statutory
17 jurisdiction or -- or don't have standing.

18 But, Mr. Chief Justice, let me just
19 add to that. Let's say the Vice President
20 said: I don't want an advisory opinion. Tell
21 me what you think. Is this actually going to
22 happen? Is it going to be enforced against me?

23 I would tell him there are three
24 layers of speculation that -- that you have to
25 get through and it's highly unlikely that even

1 a future FEC would change position and come
2 after you.

3 Number one, they'd have to change
4 their view on the constitutional question.
5 Number two, more importantly, they would have
6 to do something that the D.C. Circuit has
7 unanimously en banc said is not allowed and
8 violates rule of law 101. They would have to
9 file a enforcement action targeting past
10 conduct that occurred at a time when the FEC
11 said the conduct was lawful. The PHH case,
12 unanimous en banc decision ratifying the panel
13 decision which cited seven precedents of this
14 Court that said that's rule of law 101, that's
15 a total due process violation.

16 CHIEF JUSTICE ROBERTS: Well, I can
17 recall a few occasions on which we have
18 overruled en banc decisions from the D.C.
19 Circuit. So I don't know if that's enough of
20 an assurance to -- with speech issues at stake
21 to say that the case is moot.

22 MR. MARTINEZ: I -- I think that --
23 that the best assurance I can give you is the
24 advisory opinion process. I'm aware that the
25 administration in analogous circumstances

1 involving other decisions of this Court and
2 other precedents has been given -- giving
3 letters of assurances to individuals confirming
4 that they believe that -- that certain conduct,
5 even when it's not allowed by statute, is
6 constitutional. I think that would be yet
7 another layer of protection, in addition to the
8 statutory safe harbor.

9 But I just think as a realistic
10 matter, an FEC that comes in, even if it wants
11 to change position on the constitutional
12 question, is not going to violate rule of law
13 101 by saying we're going to go target a bunch
14 of people who were -- were -- were doing things
15 that we said was allowed. I just don't think
16 that's a realistic concern here.

17 And so, if Vice President Vance, you
18 know, had that question, I would say we've got
19 statutory mechanisms in place to protect you.
20 Let's take advantage of those. We can go to
21 the administration, which, by the way, you're
22 the number two official in, and ask for an
23 assurance letter. In addition, as a real-world
24 matter, it's super-unlikely that the FEC is
25 going to violate unanimous decision by the D.C.

1 Circuit, which was written, by the way, by a
2 member of this Court, and -- and go ahead
3 and -- and start violating due process by
4 prosecuting people for conduct that the agency
5 was -- said was allowed.

6 JUSTICE KAVANAUGH: Can I -- can I --

7 MR. MARTINEZ: It's just not
8 realistic.

9 JUSTICE KAVANAUGH: I don't -- if we
10 want to keep going on this. I was going to
11 turn to the merits. But can you address
12 McCutcheon squarely? Because that's --

13 MR. MARTINEZ: Sure.

14 JUSTICE KAVANAUGH: -- that's
15 obviously been the emphasis on the other side,
16 is that McCutcheon changed the landscape from
17 Colorado Republican.

18 MR. MARTINEZ: Sure. I -- I don't
19 think McCutcheon changed it at all. In fact,
20 McCutcheon expressly relied on this provision
21 as a basis to reach the holding in McCutcheon.

22 And I think what -- what -- I think
23 what this highlights is what's really going on
24 here. And we heard it in -- Justice Kavanaugh,
25 in your questions, your colloquy with

1 Mr. Francisco.

2 They are setting up bait-and-switch
3 2.0. Bait-and-switch 1.0 was McCutcheon. They
4 came in and said in McCutcheon, hey, we need to
5 get rid of these aggregate limits. Why?
6 Because we've got all these other protections.
7 Look, coordinated expenditures are limited too.
8 And then you said, okay, well, fine, we'll do
9 that. And you put it in your opinion that
10 coordinated expenditures was -- was going to
11 protect us.

12 Now they're coming back and saying:
13 Ha, just kidding. Actually, the coordinated
14 expenditure -- expenditure provision is
15 unlawful as well. And -- and why do you not
16 need to worry? Well, we've got these other
17 limits. But then you asked them, Justice
18 Kavanaugh, you say, well, do you think those
19 other limits are constitutional? And they say,
20 well, we're not so sure, we're not going to
21 take a position.

22 JUSTICE KAVANAUGH: Well, they did say
23 the bribery laws --

24 MR. MARTINEZ: Right.

25 JUSTICE KAVANAUGH: -- the disclosure

1 laws --

2 MR. MARTINEZ: Those are the two.

3 JUSTICE KAVANAUGH: -- and the -- and
4 I think earmarking, although that was a little
5 questionable.

6 MR. MARTINEZ: Look, I --

7 JUSTICE KAVANAUGH: But I think those
8 three were the three that said --

9 MR. MARTINEZ: -- I -- I heard two. I
10 heard bribery and disclosure, and I think that
11 gives away the game because what's really going
12 on here -- and --

13 JUSTICE KAVANAUGH: Assume it's three.
14 Assume it -- assume it's bribery, disclosure,
15 and earmarking. Why is that not enough?

16 MR. MARTINEZ: Okay. So bribery,
17 disclosure, and earmarking. You know what that
18 leaves out? All of the other, like, 50 pages
19 of laws in FECA which you have considered over
20 50 years, you have upheld them decision after
21 decision after decision.

22 And I think what Mr. Frank --
23 Francisco's position is and I think I'm glad he
24 laid it out, this wolf comes as a wolf. He has
25 basically told you that they're going to keep

1 litigating to knock down every single one of
2 the restrictions, and that includes the limits
3 on donors to candidates directly. But just
4 listen to how the -- the donor/candidate limit
5 is going to be undermined by this.

6 JUSTICE KAVANAUGH: I didn't hear -- I
7 didn't hear that.

8 MR. MARTINEZ: Well, he said that the
9 only two prophylaxes you need are bribery and
10 disclosure and maybe earmarks.

11 JUSTICE KAVANAUGH: Well, donors, I
12 mean, we were talking about parties there, not
13 candidates.

14 MR. MARTINEZ: But here's how --
15 here's how you get to the same place, Justice
16 Kavanaugh. If you -- if you rule for them
17 here, okay, what's going to happen, right now,
18 there are two limits that apply, the donor to
19 party and then the party to candidate. So
20 we're essentially going to get rid of the
21 second one. Because coordinated expenditures
22 are going to be unlimited, that limit goes
23 away.

24 Then you asked him, well, what about
25 the first limit, donor to party? He said, oh,

1 we're not taking a position, and wink, wink,
2 you know, he said don't -- don't be blind to
3 reality. The reality is they're going to be
4 coming back and asking you to overturn that and
5 that the logic that they're asking you to
6 embrace here is going to mean that that
7 provision falls too.

8 So what's that going to leave? It's
9 going to leave the donor with the ability to
10 give infinite money to the party, which the
11 Solicitor General tells you is inextricably
12 intertwined with the candidate, and then the
13 party can make unlimited coordinated
14 expenditures, which, by the way, aren't just
15 about speech. It's paying the electric bill.
16 It's paying the florist bill. It's paying the
17 pizza bill. It's any expense that the campaign
18 wants. And --

19 JUSTICE KAVANAUGH: What about the
20 idea that the parties are -- I've said this
21 multiple times -- but the parties have been
22 weakened overall and this case is at least, I
23 think Mr. Francisco said, starts to restore the
24 strength of parties, although, obviously, it
25 doesn't get them all the way there in competing

1 with outside groups?

2 MR. MARTINEZ: Look, I think, if that
3 were really concern -- their concern, what they
4 could have done is file a very different type
5 of challenge. And if the problem is look,
6 super PACs have too much ability, then what
7 they should have done is brought --

8 JUSTICE KAVANAUGH: Don't you think
9 that's a real concern?

10 MR. MARTINEZ: I think that if that
11 were their real concern --

12 JUSTICE KAVANAUGH: Is -- do you think
13 that's a real concern? The parties are very
14 much weakened and disadvantaged compared to the
15 outside groups. At least that's the
16 impression.

17 MR. MARTINEZ: I think the -- I think
18 the answer to that concern is to say that
19 parties should be able to get unlimited
20 contributions but only so long as that money is
21 used for their independent expenditures that
22 were blessed in Colorado I.

23 I think that's a solution that's
24 rational, that's consistent with the general
25 framework, with the distinction between

1 expenditures and contribution limits, and that
2 doesn't require unrolling and unraveling 50
3 years of campaign finance law. That's not what
4 they asked for and they didn't ask for it for a
5 reason, because what they're really aiming at,
6 what they're really aiming at is all the other
7 laws that they want to take down.

8 This is like the -- the camel's nose
9 under the tent. If you agree with them in this
10 case, you're going to get petition after
11 petition coming to you for this provision and
12 that provision and this -- overrule this
13 precedent and that precedent. You're going to
14 be deluged with petitions, the dominos are
15 going to fall, and you're going to have to
16 reconstruct campaign finance law from the
17 ground up.

18 I have a better solution for you.
19 Don't go down this path. We have a doctrine.
20 You have a doctrine of stare decisis. The
21 whole purpose of the doctrine is to preserve
22 the rule of law, to preserve the -- the
23 appearance and fact of the integrity of the
24 judicial process, and it says you don't just
25 throw out one decision when -- when, you know,

1 maybe you're having second thoughts about it
2 later, especially which -- when it's going to
3 mess up a whole broad area of law.

4 JUSTICE ALITO: Well, I have a --

5 MR. MARTINEZ: So you can apply stare
6 decisis if you get there.

7 JUSTICE ALITO: I appreciate your
8 solicitude for the petitions that we might get
9 in the future, but that's -- you -- you talked
10 about speculation. That's speculative. And I
11 did not hear Mr. Francisco say that he has a
12 plan to attack other provisions. Maybe he
13 does. Maybe it's predictable that he would,
14 but --

15 MR. MARTINEZ: He said it in his
16 brief.

17 JUSTICE ALITO: -- we have one
18 provision before us today, right, so don't we
19 have to decide this case and not speculate
20 about what might come later?

21 MR. MARTINEZ: Two things. I think he
22 said don't -- don't -- don't be blind to
23 reality. Let's not be blind to reality. Their
24 own brief reiterates their opposition to the --
25 the -- the contribution limit, expenditure

1 limit, it reiterates their opposition to
2 Buckley.

3 But you asked, Your Honor, Justice
4 Alito, don't we have to do this. No, you don't
5 have to do it. And the reason you don't have
6 to do it is because this case is a walking
7 vehicle problem. Let's imagine we had a time
8 machine and we went back to June.

9 JUSTICE ALITO: All right. Let's talk
10 about the vehicle problem and let's talk about
11 reality. At what point -- you have a vice
12 president or even a sitting president who's --
13 who -- who has been in, you know, may or may
14 not run for a second term.

15 That potential candidate, at what
16 point do you think it would -- that potential
17 candidate would have -- be able to challenge a
18 provision like this? And, here, it's not a
19 question of standing from the outset. It's a
20 question of whether it has been shown that the
21 case has been -- become moot.

22 MR. MARTINEZ: Right. So I think -- I
23 think the -- the analytical question to ask is
24 does the candidate still have a concrete plan
25 to run. And I think the evidence might not

1 be --

2 JUSTICE ALITO: And you would say
3 when -- only when the -- the candidate has a
4 big event and announces --

5 MR. MARTINEZ: No.

6 JUSTICE ALITO: -- I'm going to run,
7 even if the candidate has raised a lot of money
8 and has hired all sorts of consultants and --

9 MR. MARTINEZ: No -- no, Your Honor.
10 I -- I'm not --

11 JUSTICE ALITO: No?

12 MR. MARTINEZ: -- requiring that.
13 What I'm saying is that the analytical question
14 is when does he have a concrete plan. And then
15 you're going to have to look to evidence in the
16 public, in the record, et cetera, about what
17 that plan is.

18 And I think, in a circumstance -- I'll
19 tell you when it's not satisfied. It's not
20 satisfied when the candidate says in comments
21 published today that a 2028 run is "something
22 that could happen, it's something that might
23 not happen."

24 Look at the other comments. In
25 February, he's not --

1 JUSTICE ALITO: Isn't -- isn't that
2 what -- isn't that what every -- potential
3 candidates always say --

4 MR. MARTINEZ: That's what --

5 JUSTICE ALITO: -- until the day when
6 they make the announcement?

7 MR. MARTINEZ: That's what can- --

8 JUSTICE ALITO: That's what they
9 always say.

10 MR. MARTINEZ: That's what candidates
11 say when they're running. That's also what
12 candidates say when they're not running. The
13 most -- the most closely analogous candidate to
14 the Vice President, the most -- the most recent
15 vice president who was serving a second term
16 president was Vice President Biden in 2013.

17 He was saying virtually identical
18 things to what Vice President Vance is saying
19 now, and, of course, he did not run. So I
20 think politicians, we all have seen
21 politicians. They have an interest in not
22 saying what their decision is until they have
23 to because it keeps their name in the news.

24 I think, here -- but -- but I think
25 that this poses a really interesting and

1 important question for the Court, which is, are
2 you going to be in the business of
3 second-guessing the public statements of
4 politicians and plaintiffs when they're telling
5 you essentially that they don't have standing
6 or that their case has become moot.

7 I mean, Vice President Vance's lawyers
8 are basically telling you ignore what he's
9 saying publicly, don't believe him, wink, wink,
10 nod, nod, don't be naive. We all know he's
11 really running.

12 If that were true, the -- the easiest
13 thing in the world would be for this plaintiff,
14 like any other plaintiff, could have come
15 forward and said, I'm running, or told his
16 lawyers, put that in the brief, say I'm
17 running, say I have a concrete plan.

18 I understand why, for political
19 reasons --

20 JUSTICE ALITO: I mean, are you
21 serious -- are you serious -- anyway, my time
22 is up.

23 MR. MARTINEZ: I'm -- I'm serious --
24 Your Honor, I'm serious --

25 CHIEF JUSTICE ROBERTS: Thank --

1 MR. MARTINEZ: -- that the same rules
2 have to apply to all plaintiffs. And the fact
3 that someone is a politician who has an
4 interest in perhaps dissembling to the public
5 about their plans is not a reason to relax your
6 normal Article III standards.

7 If the plaintiff in Lujan had come to
8 you and said, well, you know, I did have a plan
9 to visit the -- the wildlife refuge to see the
10 spotted owl and I bought plane tickets and all
11 that, but now I'm not so sure, I canceled the
12 plane tickets, the plan is kind of off, I might
13 do it, I might not do it, it's premature to
14 know, any other plaintiff who was saying the
15 same things that the Vice President is saying
16 here, you would say there's no standing and you
17 would say that the case has become moot.

18 CHIEF JUSTICE ROBERTS: All right.
19 Thank you.

20 MR. MARTINEZ: And I think the same
21 rule should apply to anyone.

22 CHIEF JUSTICE ROBERTS: Thank you,
23 counsel.

24 I want a follow-up on Justice
25 Kavanaugh's question at the outset because I'm

1 not sure it was answered directly, but is there
2 any part of or language in McCutcheon with
3 which you disagree?

4 MR. MARTINEZ: I do think that there
5 are concerns I have about the empirical
6 analysis and the predictions that were made in
7 McCutcheon and its analysis of joint
8 fundraising, so if I could just sort of spell
9 that out.

10 CHIEF JUSTICE ROBERTS: Sure.

11 MR. MARTINEZ: I think the Court in
12 McCutcheon was responding to a hypothetical
13 that the district court had put forward and
14 certain arguments that had been made by the
15 parties. And the Court essentially said it's
16 just illogical, it's -- it's -- it's
17 unrealistic to think that all this money is
18 going to shift around in the way that's being
19 suggested.

20 And I think the Court's opinion said
21 something like, you know, it's crazy to think
22 that the Iowa Republican Party is going to want
23 to help the Senate candidate from California
24 and send the money to the California Republican
25 Party.

1 And I think that's true insofar as
2 it's limited. It's -- it's true that state
3 parties don't often shift to another state
4 Republican party, but the reality is that what
5 they do do -- and this is just a hundred
6 percent objective fact that you could -- that
7 anyone could see if you go to the FEC
8 website -- is state parties don't give to each
9 other.

10 What they do is they -- they send
11 their money up to the NRSC, to the NCCC --
12 sorry, NRCC and to the RNC. So just in 2024,
13 for example, state parties sent almost \$30
14 million that they collected and they sent it to
15 the NRSC, and they didn't do it because those
16 states had Senate races and they wanted the
17 NRSC's help. And I'm talking about the
18 Republican Party of D.C., the Republican Party
19 of Georgia, the Republican Party of New
20 Hampshire, state parties that had no -- no, you
21 know, geographic interest in a Senate race.
22 They sent that money up.

23 In the -- in the presidential races,
24 it's even more obvious. So there have been FEC
25 proceedings looking at the joint fundraising

1 campaigns of the Trump and Clinton campaigns
2 from 2016. If you look at the money that the
3 state parties received through those joint
4 fundraising efforts, 80 percent of the money
5 that Democratic state parties collected went to
6 the DNC; 90 percent plus of the money that the
7 Republicans collected went to the RNC.

8 So I think, in McCutcheon, probably
9 because this wasn't properly put before you,
10 but the -- the -- the -- the hypothetical was
11 not the exact hypothetical that needed to be
12 considered. And so, if the question is are
13 these state parties being used, essentially, as
14 cash cows to kind of launder money through and
15 get it back up to the national parties, the
16 answer is absolutely yes, and that raises
17 the -- the very serious problems of quid pro
18 quo corruption that -- that I think we should
19 all be worried about.

20 CHIEF JUSTICE ROBERTS: Thank you.

21 Justice Thomas?

22 Justice Alito, anything?

23 Justice Sotomayor?

24 JUSTICE SOTOMAYOR: You spent a lot of
25 time on standing, more than I would have hoped,

1 but I do want to say that whether he runs for
2 President or Senate, how do you eliminate that
3 if he doesn't get to run for President, that
4 he'll run for Senate, given that he has a
5 committee with \$50,000?

6 MR. MARTINEZ: Oh, I --

7 JUSTICE SOTOMAYOR: I don't want you
8 to spend a lot to --

9 MR. MARTINEZ: -- I'm so glad you
10 asked. So I don't think there's any realistic
11 chance that he's running for Senate. There --
12 there's a sitting Republican senator who's
13 currently in that seat who's running for re-
14 election. It's -- in 2026. And he is likely
15 to win -- I think he's likely to win. If he
16 wins, he's going to be the sitting incumbent.
17 It's extremely unlikely that he's running for
18 Senate. The Vice President has never -- has
19 never said since becoming Vice President that
20 he's considering running for Senate.

21 On the \$50,000 question, look at it in
22 context. Real Senate candidates do not --
23 would be way beyond \$50,000. I think Mark
24 Kelly, who's running for Senate in Arizona, has
25 raised \$9 plus million. John Fetterman, who's

1 running for Senate in 2028 in Pennsylvania,
2 \$1.2 plus million. So \$50,000 is actually a
3 sign that he's not a real candidate for Senate.

4 JUSTICE SOTOMAYOR: All right. Now
5 let's go back to the merits.

6 MR. MARTINEZ: Sure.

7 JUSTICE SOTOMAYOR: All right?
8 Justice Kavanaugh said there are three
9 prophylactics, the bribery statute, the
10 earmarking statute, and what was the third?
11 Now I've forgotten the third.

12 JUSTICE KAVANAUGH: Disclosure.

13 MR. MARTINEZ: Disclosure.

14 JUSTICE SOTOMAYOR: Disclosure. Thank
15 you.

16 McCutcheon seemed to say that those
17 were enough. Why is this different?

18 MR. MARTINEZ: I don't think
19 McCutcheon said that they were enough, but I
20 think the -- the -- the key thing to realize,
21 there's -- there's some language in McCutcheon
22 talking about conduits and independent actors.
23 I think it's a crucial point for this Court to
24 appreciate that there's an internal
25 contradiction in the arguments that the

1 Solicitor General's Office is making together
2 with Petitioners.

3 They want you to believe two things
4 that are diametrically opposed. On the one
5 hand, the whole theory for giving parties
6 special treatment is because -- and why, you
7 know, parties can't corrupt candidates is
8 because they are inextricably intertwined.
9 That's the language that comes out of this
10 Court's case law that the Solicitor General
11 really emphasizes over and over again in their
12 brief. The parties and the candidates,
13 inextricably intertwined.

14 But then we get to talk about quid pro
15 quo corruption. What's their theory there?
16 Their theory there is, oh, these are
17 independent actors, totally different actors,
18 and that's why we don't have to worry about
19 quid pro quo corruption.

20 Well, they can't have it both ways.
21 If the parties are inextricably intertwined for
22 purposes of getting special rights, they can't
23 be totally independent actors for purposes
24 of -- of dismissing concerns about quid pro quo
25 corruption.

1 And I think that sort of gets to the
2 heart of it. I think, when you look at
3 McCutcheon, McCutcheon relied on the validity
4 of this provision, and I think it's perfectly
5 fair to say that just as in McCutcheon we
6 treated this provision as valid, we're going to
7 continue treating it as valid in this case.

8 JUSTICE SOTOMAYOR: What about --
9 Mr. Francisco pointed to the fact that there
10 was no evidence of a quid pro quo involving
11 coordination between a party and a candidate,
12 and he points to the fact that there's no
13 such -- that that coordination is permitted in
14 28 states.

15 How do you address that?

16 MR. MARTINEZ: So I wasn't part of
17 developing the record in this case. I just
18 think two comments. First of all, I think
19 that -- that, you know, when you see it's
20 raining out and you see there's a good reason
21 to carry an umbrella, that's a pretty good
22 reason to take the umbrella. And --

23 JUSTICE SOTOMAYOR: We're both
24 borrowing from my sister, Ruth Bader Ginsburg.

25 MR. MARTINEZ: Absolutely. And I

1 think the Watergate evidence was -- was
2 directly on point. You -- I think you raised
3 it earlier. The dairy industry evidence showed
4 that there was a very serious quid pro quo
5 corruption problem where donors were using
6 political parties to launder millions of
7 dollars to -- essentially, to candidates in
8 order to get bribes. So I think that's a --
9 that justifies the law. That, frankly, should
10 be enough.

11 Now the -- the implicit premise in my
12 friend's position is that once you have a law
13 that's been in place for a long time that's
14 doing good work, you have to kind of
15 continually re-evaluate it, and the way you
16 continually re-evaluate it is by looking to,
17 like, whether states need similar laws in their
18 states.

19 I just think that's a very bizarre way
20 to -- to think about the problem, and I think
21 the states' brief supporting us makes that
22 clear.

23 CHIEF JUSTICE ROBERTS: Justice Kagan?
24 Justice Gorsuch?
25 Justice Kavanaugh?

1 Justice Barrett?

2 Justice Jackson?

3 Thank you, counsel.

4 Mr. Elias.

5 ORAL ARGUMENT OF MARC E. ELIAS

6 ON BEHALF OF THE INTERVENORS

7 MR. ELIAS: Mr. Chief Justice, and may
8 it please the Court:

9 Over 50 years -- over the past 50
10 years, this Court has had opportunity to review
11 many campaign finance laws, and it has
12 appropriately treated many of them skeptically,
13 but it has never wavered on one foundational
14 pillar: Congress may limit contributions to
15 candidates.

16 And while the current system imposes
17 strict limits on nearly everyone else, my
18 clients and the NRSC and the NRCC are given a
19 special privilege to make millions of dollars
20 of in-kind contributions to candidates.

21 These limits on in-kind contributions
22 are called coordinated expenditures, but they
23 do not pose any meaningful burden on party
24 speech. In fact, the vast majority of them
25 hardly involve speech at all. The practical

1 effect of Petitioners' case would be to convert
2 the political parties into mere paymasters to
3 settle invoices from campaign vendors.

4 This Court has repeatedly recognized
5 that these are just contributions which provide
6 only a general expression of support for
7 candidates. Congress may regulate them.

8 I welcome your questions.

9 JUSTICE THOMAS: So, if you say it's
10 not speech at all, can it be totally regulated?
11 There are no limits?

12 MR. ELIAS: I -- under the Buckley
13 framework, there are still limits on regulation
14 of contributions. This Court's decision, for
15 example, in the Vermont limits case put in
16 play -- said that limits could be so low as --

17 JUSTICE THOMAS: No, I mean you just
18 said that there is no speech component to this,
19 that they can be regulated, that -- so what's
20 the protection if there's no speech component
21 to it?

22 MR. ELIAS: So there is a speech
23 component. What this Court said in Buckley is
24 that the speech component is -- is in showing
25 support, in other words, is in making a --

1 an -- a contribution is an act of speech. And
2 in the Sorrell case, this Court said that there
3 was a limit to how low party limits could be,
4 that you would effectively deprive that --
5 that -- being able to make that speech
6 component.

7 My point, Justice Thomas, is that I
8 think -- imagine in the ether is the sense that
9 what's going on is that the Republican Party
10 wants to run -- wants to create an ad on their
11 platform and they lament, if only they could
12 coordinate with a candidate, they would make
13 this ad on their platform more effective.

14 That would be an interesting
15 as-applied challenge. That isn't either their
16 facial challenge nor reality, nor even their
17 as-applied challenge. What the NRSC and the
18 NRCC wish to do is to simply pay the bills of
19 campaigns, bills that may not involve speech at
20 all. May involve, for example, flowers or may
21 involve hotel blocks, and in which the party
22 may not even know that the bill was incurred
23 until they receive the invoice and are told to
24 dutifully pay it. And that poses a very
25 different profile of the kind of speech

1 interest that is at stake here.

2 JUSTICE SOTOMAYOR: I'm sorry,
3 counsel, now I'm a little confused. I thought
4 that they are attacking coordinated
5 expenditures and saying that they should be
6 able to coordinate expenditures. I don't
7 think -- and Mr. Francisco, when he gets up on
8 reply, will make this clear or not -- they're
9 not saying that coordinated expenditures means
10 that a candidate can just give the bill to the
11 committee. They're saying the candidate can
12 say to the committee do this and do that and
13 the committee can do it.

14 MR. ELIAS: No, Your Honor.
15 Coordinated expenditures, whether they be for
16 paid public communications like television ads
17 or they are for hotel blocks or they are for
18 the electric bill, these are invoices incurred
19 by the campaign's vendors, payable, owed by the
20 campaign, that are simply handed off to the
21 party committee for payment.

22 And that is perfectly lawful. That
23 is -- that is how coordinated party spending
24 works. If you look at -- in the record at the
25 Chabot ad or the Vance ad at JA 195 through 96

1 or 198 through 2000 -- I'm sorry -- through
2 205, you see that there is -- there are e-mail
3 chains in which the media vendor for the
4 campaigns are talking to the campaign itself
5 about the ad and talking about the changes they
6 have made to the ad at the direction of the
7 campaign.

8 And then, at the end of the chain, it
9 is: Here, party, pay this. Now it's maybe a
10 little more polite than that. Maybe it's:
11 Please pay this.

12 But, you know, one of the questions
13 that -- that came up about, you know, who this
14 benefits, and I'll -- I'll be happy to address
15 that now or -- or later, the NRSC's membership
16 are incumbent Senators, the NRCC's membership
17 are incumbent members of the House.
18 Interestingly, among all of the lawyers here,
19 none of them represent the Republican National
20 Committee. None of them represent a state
21 party.

22 Sure, the RNC nominates candidates.
23 The RNC has a platform. The NRSC does not
24 nominate candidates. No one runs on a ballot
25 as the NRSC's candidate. These are campaign

1 committees. They exist, like super PACs,
2 solely to elect candidates to office.

3 And so, when a -- when a incumbent
4 senator's campaign or a competitive senator's
5 campaign in, for example, in this case in Ohio,
6 sends a bill to the party, that's just a seat
7 that these incumbent senators want to add to
8 their tally or it's a colleague of theirs who
9 is a member of the committee whose bill they
10 want to pay.

11 JUSTICE BARRETT: Mr. Elias, can I --
12 can I ask you to maybe address Justice Alito's
13 question to Mr. Francisco a little more
14 directly?

15 Mr. Francisco said that the RNC and
16 the DNC had long been aligned on this question.
17 And, normally, regulated parties are happy to
18 get rid of regulation. And, obviously, this
19 ties the DNC's hands just as much as it ties
20 the RNC's hands.

21 So I guess my questions are two. One
22 is, if the parties had long been aligned on
23 this, why change the position? And, two, if
24 there isn't an imbalance in who this benefits,
25 why would the DNC be here? Like, why would

1 your client be here if it didn't perceive this
2 to be something that benefit -- would benefit
3 the RNC more than the DNC?

4 MR. ELIAS: Yeah, so I would correct
5 my -- my friend. I don't believe the parties
6 have been aligned on this interest. I think
7 the -- the issue -- I think that if you go
8 back -- in fact, I know since the very first
9 brief my name ever appeared on before this
10 Court was in 1995 in Colorado I and you look at
11 the position of the Democratic National
12 Committee and the Democratic Senate and
13 Congressional Campaign Committee, they -- they
14 did not say that the limits should be struck
15 down. Their brief said essentially that the
16 definition of "coordination" should be narrowed
17 but not that the limits entirely should be
18 struck down.

19 And we did not file a brief in support
20 of the -- of Colorado -- of the Republican
21 party in Colorado II. So I don't think that
22 it's correct to say that our position here has
23 been aligned.

24 And, certainly, our -- our
25 officeholders and our members in voting in

1 Congress and in their public statements and in
2 the platform of the Democratic Party have not
3 been aligned with striking down this limit.

4 To -- to answer the question directly,
5 I think that the -- the reason why there is a
6 difference here might stem from the fact that
7 the RNC is not in this case. I mean, the fact
8 is the Democratic National Committee spends an
9 enormous amount of money and energy on
10 party-building, on registering people to vote
11 in states like Indiana and Missouri when there
12 is no competitive Senate or House election in
13 Indiana or Missouri. And what this is going --

14 JUSTICE ALITO: Put aside the question
15 of -- of the -- of the RNC and why they're not
16 here. How is your client hurt by -- how would
17 your client be hurt if this provision were held
18 to be unconstitutional?

19 I assume you think so. So why?

20 MR. ELIAS: Right. So, Your -- Your
21 Honor, what I was starting to say is that the
22 par- -- the national -- the national committee
23 in particular, but all of the -- the -- the
24 national parties, but the national committee in
25 particular and state parties, they have to do

1 party-building day in, day out, year in, year
2 out. They have to build the next generation of
3 candidates. They have to register voters in
4 all 50 states.

5 There has been a lot of press about
6 the Democratic National Committee's 50-state
7 project and its expansion, and what that means
8 is that you are investing your hard money not
9 just in the next swing state election, not just
10 in the next competitive election, but in
11 building for the future.

12 What this will do is put -- is create
13 a -- a collective action problem that will
14 drive the parties inevitably to just being
15 bill-payers. They will not be able to do --
16 they will not be able to support activity that
17 is long term in nature because the -- there
18 will be an arms race that right now doesn't
19 exist. The coordinated party spending limits
20 act as a buffer on how much money you can pump
21 into directly paying the bills of a House or
22 Senate campaign or a presidential campaign so
23 that you have funds to do these other
24 party-building functions.

25 JUSTICE JACKSON: So that's actually

1 quite interesting because it's a different view
2 of how these rules either help or hurt parties.

3 So what I think you're saying is that
4 if these limits are eliminated that it will
5 somehow make the party or the parties on both
6 sides into kind of glorified fundraisers for
7 the candidate as opposed to putting their money
8 and efforts into the kinds of party-building
9 activities that you would prefer to do.

10 MR. ELIAS: Yeah. Yes. And I think
11 it's no surprise that if you look at many of
12 the states that have no limits on party
13 coordinated expenditures, they are among the
14 weakest parties in the country at the state
15 level.

16 JUSTICE JACKSON: So the rules don't
17 disadvantage parties in that sense.

18 MR. ELIAS: No. What -- look, if this
19 Court wants to -- to enact new rules that
20 benefit parties, I've got a long list.

21 (Laughter.)

22 MR. ELIAS: But -- but it would not
23 begin or even be on the list to strike down the
24 ban on -- or the limits on coordinated party
25 expenditures.

1 I want to make a couple of other
2 points just to clarify.

3 JUSTICE KAVANAUGH: Both -- both
4 parties will be operating under the same rules,
5 and you're saying -- are you saying there would
6 be a differential impact on the two parties or
7 just the collective action problem and you
8 don't want to be part of that?

9 MR. ELIAS: It's the collective action
10 problem.

11 And I didn't mean to suggest, Justice
12 Alito, that there's anything untoward with the
13 RNC not being here. My point is just that the
14 national committees bear an extra burden with
15 respect to these party-building activities that
16 understandably the congressional committees and
17 an individual candidate, the individual
18 candidate just cares about the next election.
19 Senate -- Senate campaign and House campaign,
20 they just worry about the next -- winning the
21 majority in the next election.

22 The DNC and the RNC and state parties
23 bear -- have larger infrastructure purposes,
24 and that's why, in Colorado, it was the
25 Colorado Republican Party that was leading the

1 charge. That's why, in the Cao case in the
2 Fifth Circuit, it was the RNC and a candidate
3 leading the -- the -- the charge.

4 So I -- there are a couple of points,
5 though, that I'd like to clarify.

6 JUSTICE KAGAN: I want to let you do
7 that, but sometimes, when people talk about the
8 weakness of parties in the current day, what
9 they mean is the parties have no control over
10 individual candidates, senators, house members.

11 So how would this affect that if you
12 thought that? And, obviously, we're not in the
13 business of trying to figure out whether
14 parties need help and how best to provide it,
15 but I'm just wondering, if you think that the
16 real problem with the weakness of parties is
17 that there's not enough party control over
18 candidates, how does that play out?

19 MR. ELIAS: Right. So I -- I would --
20 I would answer that in two ways, the first with
21 respect to the -- the -- the actual plaintiffs
22 below, the -- the Petitioners in this case.

23 The membership of the NRSC is the
24 sitting caucus of the Republican senators. The
25 membership of the congressional committee are

1 members of the Republican conference. They are
2 part of leadership. They literally are listed
3 in the official directory. They are elected as
4 part of the official election of leadership in
5 the body.

6 I promise you that is where their
7 power comes from. Their power comes from the
8 fact that they are a coalition of incumbent
9 members of the House and Senate. It is not
10 because of their ability to paymaster more
11 money to this candidate or that candidate that
12 gives them power in their -- in their
13 elections.

14 Can I make just a couple of points?

15 First, very small, you asked --
16 Mr. Martinez was asked if an advisory opinion
17 binds private parties. It does. It acts as
18 a complete shield against any liability,
19 criminal, civil, by -- by anyone.

20 The second question was -- or -- or
21 there was a lot of discussion about super PACs
22 and the relative power of super PACs versus the
23 party committees. The -- the key benefit that
24 the party committees have that seems to have
25 gone unmentioned is actually found in

1 McConnell, which is the member of Congress
2 can't solicit money for a super PAC in excess
3 of \$5,000.

4 So, when we talk about: Oh, well, you
5 know, they would much rather have the money go
6 to a super PAC, well, that may be what they
7 privately want as an elected member of Congress
8 or as a candidate, but candidates and
9 officeholders cannot solicit for these
10 super PACs.

11 So it's not just that they're
12 independent in their spending, they are
13 actually on their own, largely, with some
14 exceptions, which I'm happy to address, in
15 how that money is -- is -- is raised.

16 With respect to the earmarking rules,
17 there's been a lot of mention about the
18 earmarking rules but not a lot of discussion of
19 it. The reason why the earmarking rules are
20 not effective, and I think this is a bit of a
21 change since McCutcheon, frankly, are for two
22 reasons.

23 The first is because joint fundraising
24 is essentially an exception to the earmarking
25 rules, right, because -- because, after all, if

1 you have a joint fundraising committee between
2 a candidate and 50 state parties, the candidate
3 name is in the joint fundraising committee
4 because they are a participant. So it's not
5 illegal earmarking that someone is giving to
6 the Trump victory fund or the Hillary victory
7 fund or the Biden victory fund. It's required
8 by the stat -- by the regulation because their
9 committee is getting the first money in that
10 arrangement.

11 So I think that the -- that -- that,
12 first of all, you have to understand that the
13 earmarking prophylactic just, like, doesn't
14 have any application in the joint fundraising
15 arena.

16 CHIEF JUSTICE ROBERTS: Thank you,
17 counsel.

18 Justice Thomas?

19 JUSTICE THOMAS: Just so I'm clear, is
20 there any First Amendment interest in
21 coordinated expenditures?

22 MR. ELIAS: Your Honor, I think that
23 there is an interest, a -- a First Amendment
24 interest in coordinated expenditures in two
25 regards. Number one, there is an interest

1 anytime any entity or person wishes to make a
2 contribution to a political committee. They
3 are making -- they are expressing First
4 Amendment speech. They are engaged in First
5 Amendment speech.

6 Buckley said that that is -- that that
7 is satisfied by allowing them to contribute,
8 so, essentially, the speech is in the first
9 dollar. It is in showing support for that --
10 for that candidate. And that's why the
11 contribution limits could be \$3500, because the
12 idea to contribution-limit candidates, because
13 the -- the donor is -- is -- is -- is engaged
14 in First Amendment activity, engaged in First
15 Amendment speech. It is essentially symbolic
16 speech. It's the act of giving money. So
17 that's number one.

18 Number two, I -- again, I think this
19 case would be a very different one if the
20 as-applied challenge -- first of all, if it was
21 an as-applied challenge. But, second, if it
22 was an as-applied challenge where what the
23 party wanted was its own speech and it wanted
24 to coordinate that speech with a candidate,
25 that would pose a very difficult case and there

1 would be different considerations on how that
2 could be limited, which is why, in 1996, the
3 brief of the Democratic Party went to what the
4 scope of coordination was, that there should be
5 less of a sweep of what is considered
6 coordinated.

7 But, if you're saying is there First
8 Amendment speech with respect to paying the
9 bills of a campaign so that the campaign staff
10 stayed at a hotel, it is just in the act of
11 making the -- the donation. It's just in the
12 act of making the in-kind contribution.

13 JUSTICE THOMAS: I still don't
14 understand. You're saying, if the party
15 coordinates with the candidate and pays the
16 bill, is that speech or is -- does that have a
17 First Amendment protection, or is it simply, as
18 you say, a bill-paying exercise?

19 MR. ELIAS: It is speech. It is
20 speech. And under Buckley, what it is treated
21 as is a contribution, and, therefore, though it
22 is speech, it is subject to limit by Congress
23 on how much can be spent in engaging in that
24 speech.

25 CHIEF JUSTICE ROBERTS: Justice Alito?

1 JUSTICE ALITO: If we look at all of
2 the limitations and the restrictions and the
3 variable limits, how can the provision satisfy
4 any sort of heightened scrutiny? And does that
5 cause reason for legitimate skepticism about
6 whether this is about circumvention at all as
7 opposed to other things like favoring
8 incumbents, favoring major parties, et cetera?

9 MR. ELIAS: So are you talking about,
10 for example, the 2014 new accounts?

11 JUSTICE ALITO: I'm talking about all
12 of the restrictions and limitations.

13 MR. ELIAS: So I think each one of
14 these restrictions and limitations has a
15 constitutional -- either a constitutional
16 reason or a constitutionally motivated reason.

17 So, for example, the 2014 accounts,
18 something I'm very familiar with, the reason
19 why the legal account was treated in this new
20 law was because, prior to that, there was and
21 remains on the books today a regulation, 11
22 C.F.R. 100.9 and 100.15, that entirely exempt
23 recounts from the campaign finance laws,
24 entirely.

25 If you go back to the Bush/Gore

1 recount, none of that money was paid out of the
2 hard money accounts. What happened is that
3 after the McCain-Feingold law, after this
4 Court -- Court's decision in McConnell, there
5 became a genuine question whether, because of
6 the ban on national parties and candidates
7 raising, spending, directing, or controlling --
8 apologize if I missed a -- missed a word
9 there -- soft money, whether that -- those
10 regulations were still in effect.

11 So Congress in 2014 passed -- they
12 clarified against a backdrop in which, by the
13 way, many Republican elected officials were
14 taking the position it is still unregulated,
15 unlimited.

16 JUSTICE ALITO: All right. Well, we
17 don't -- we don't want to take the time --

18 MR. ELIAS: Okay.

19 JUSTICE ALITO: -- to go through all
20 of these one by one. Just one more.

21 The difference in the limit for --
22 which was talked about, the limit in California
23 and the limit in Wyoming.

24 MR. ELIAS: Yeah.

25 JUSTICE ALITO: How is that -- how can

1 that be seen as based on preventing
2 circumvention?

3 MR. ELIAS: So, look -- and this, you
4 see this in states as well, in various state
5 campaign finance laws. Legislatures have one
6 of two choices or a combination. They can
7 either say we don't care whether you're running
8 for insurance commissioner, county council, or
9 governor, the contribution limit is a thousand
10 dollars, you know, or \$5,000, whatever it is,
11 just a -- it's just a flat limit. In some
12 states, the limits for governor are higher than
13 the limits for town council or higher for
14 governor than they are for legislature.

15 And it's never -- those have never
16 been viewed as constitutionally suspect. The
17 theory is that for some offices, it simply
18 costs a lot more money to -- to run a
19 comparative campaign, and, therefore, they're
20 going to set different contribution limits from
21 different -- from donors because they are
22 reflecting the difference in the cost in
23 running campaigns.

24 JUSTICE ALITO: Well, I don't think
25 that helps you to say that unless I'm -- unless

1 I'm missing the point. Is there a greater --
2 is the degree of risk of corruption different
3 in those two places?

4 MR. ELIAS: They -- they are because
5 the fact is people -- the fact is that it is
6 not that the good people of Wyoming are any
7 more likely to be corrupted than the -- than
8 folks in California. But the value of a
9 hundred thousand dollar bill pay for a
10 television ad in Wyoming might be a week's
11 worth of television. In California, the -- the
12 value of a week's worth of bill pay for a
13 television ad wouldn't buy you a single spot in
14 Sacramento.

15 JUSTICE ALITO: Okay. I understand.
16 Thank you.

17 CHIEF JUSTICE ROBERTS: Justice
18 Sotomayor?

19 Justice Kagan?

20 JUSTICE KAGAN: Mr. Elias, I think
21 some of the skepticism when you approach limits
22 like this is, well, if we took them off, it
23 might be a better world, it might be a worse
24 world, who knows. But, with respect to the
25 particular thing that we're supposed to be

1 concerned about, which is the prevention of
2 quid pro quo corruption, it would not be a
3 different world, that that's the kind of
4 skepticism, that with respect to that one
5 interest, this limit just doesn't have enough
6 connection to that interest in preventing quid
7 pro quo corruption or preventing people from
8 circumventing the -- the principal quid pro quo
9 rules, the contribution limits.

10 So how would you address that?

11 MR. ELIAS: I would address it very
12 straightforwardly. Congress passed limits that
13 right now say that an individual can give
14 \$3,500 per election to a candidate. In
15 reality, there are joint fundraising committees
16 in which an individual can give over a million
17 dollars to a committee that bears that
18 candidate's name.

19 Now we can debate whether or not that
20 creates actual corruption, actual quid pro quo
21 corruption, and I do think that it is being
22 undersold. The record there, I would -- I
23 would point you all to the Lindberg example in
24 the CREW brief at page 1718, where a -- a
25 insurance company, in fact, made a \$500,000

1 contribution to the North Carolina Republican
2 Party and then instructed the state party to
3 give \$250,000 of it directly to the candidate,
4 and that was prosecuted as quid pro quo bribery
5 because, in fact, that individual wanted
6 legislation. And that took place in 2020.

7 So I think -- I think we're
8 underselling the actual corruption. But,
9 honestly, if an individual giving a million
10 dollars when the base limit is \$3500, and at
11 the same time, they have business before the
12 House or the Senate and that -- and that
13 individual may be a deciding or swing vote,
14 that is a world that McCutcheon didn't
15 envision. That is certainly a world that
16 Buckley didn't envision.

17 And if you take off the -- the only
18 prophylactic -- we've heard a lot about
19 prophylactics, prophylactics. The only
20 prophylactic that is in place right now on that
21 is the coordinated party spending limit. The
22 only thing that is preventing the connection
23 between that donation and the -- and the money
24 being used to pay bills that the candidate
25 wants paid right now is the coordinated party

1 spending limit.

2 If you take that off, then, frankly,
3 I'm not sure, other than the bribery law, I
4 don't think anything is left. The -- the
5 earmark regulation just won't apply, so you can
6 take that one off the table.

7 And I hear people say, well,
8 disclosure. I mean, honestly, I'm not even
9 sure I understand what that means. I mean, no
10 one in this courtroom spends more time on the
11 FEC's disclosure database than I do, and I
12 don't even know what it is I'm hypothetically
13 supposed to be looking at to figure out that
14 corruption. Sure, I see a lot of money going
15 in, and then I guess I follow what happens on
16 Capitol Hill, but, other than that, what's that
17 database telling me?

18 JUSTICE KAGAN: Thank you.

19 CHIEF JUSTICE ROBERTS: Justice
20 Gorsuch?

21 Justice Kavanaugh?

22 Justice Barrett?

23 Justice Jackson?

24 Thank you, counsel.

25 MR. ELIAS: Thank you.

1 CHIEF JUSTICE ROBERTS: Rebuttal,
2 Mr. Francisco?

3 REBUTTAL ARGUMENT OF NOEL J. FRANCISCO
4 ON BEHALF OF THE PETITIONERS

5 MR. FRANCISCO: Thank you, Mr. Chief
6 Justice. Three quick points.

7 We are -- first, we are fine with the
8 earmarking rule. I can't imagine we'd be here
9 challenging the earmarking rule.

10 Secondly, we began on jurisdiction
11 with Vice President Vance because it's,
12 frankly, indisputable that the Sixth Circuit
13 had jurisdiction and statutory authority over
14 Vice President Vance at the time that it ruled.

15 He was not yet elected to the vice
16 presidency, so he was still a sitting United
17 States Senator. Even under my friend's view,
18 that would be within the Article III
19 jurisdiction of the Sixth Circuit. And, as a
20 voter, he had the authority to trigger 30110's
21 independent cause of action. So we satisfied
22 everything in the Sixth Circuit.

23 Now that we're before this Court,
24 30110 simply does not apply. It does not apply
25 in this Court. What matters in this Court is

1 that you have authority under the cert statute.
2 He's not claiming you don't. And that you have
3 Article III jurisdiction, which you do with
4 respect to Vice President Vance for all of the
5 reasons discussed and which -- which you also
6 have with respect to the committees.

7 His only argument there is that the
8 committee's authority arises from a 50-year-old
9 regulation. Well, this Court upheld that
10 regulation in 1981. In Loper, you made clear
11 that that regulation survives as a matter of
12 statutory stare decisis.

13 And in 2014, Congress ratified that
14 regulation when it adopted exceptions to the
15 coordinated spending limits and explicitly
16 applied those exceptions to the congressional
17 committees. That makes no sense unless the
18 limits apply to the committees in the first
19 place.

20 My third point goes to the merits and
21 it goes to, Justice Alito, your question.

22 The base limits here show almost to a
23 metaphysical certitude that the coordinated
24 spending limits have nothing to do with quid
25 pro quo bribery. The base limits are the same

1 everywhere for every race: \$3500 for
2 individuals, \$500 for the party committees.

3 That shows that Congress thinks the
4 risk of bribery is the same everywhere, the
5 same in Wisconsin as it is in -- as it is in
6 California. Yet the coordinated spending
7 limits range from \$60,000 to \$4 million
8 depending on the race and location. That makes
9 no sense if what you're concerned about is
10 bribery. Even a Senate candidate in California
11 could be bribed for \$4 million.

12 But it makes perfect sense if what
13 you're trying to do is limit the overall amount
14 of money in politics. That, however, is what
15 this Court has repeatedly said is verboten
16 under the First Amendment. The last people who
17 should be saying what should be spent in
18 elections are the people who are holding power
19 today.

20 With respect, this Court has
21 jurisdiction. This law is unconstitutional.
22 We ask that you invalidate it.

23 CHIEF JUSTICE ROBERTS: Thank you,
24 counsel.

25 Mr. Martinez, this Court appointed you

1 to brief and argue this case as an amicus
2 curiae in support of the judgment below. You
3 have ably discharged that responsibility, for
4 which we are grateful.

5 The case is submitted.

6 (Whereupon, at 12:13 p.m., the case
7 was submitted.)

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